THE NATIONAL ASSEMBLY	THE SOCIALIST REPUBLIC OF VIETNAM
______	**Independence - Freedom - Happiness**
Law No. 61/2020/QH14	**______**

LAW
ON INVESTMENT

Pursuant to the Constitution of the Socialist Republic of Vietnam;

The National Assembly promulgates the Law on Investment.

Chapter I
GENERAL PROVISIONS

Article 1. Scope of regulation

This Law prescribes business investment activities in Vietnam and offshore business investment activities from Vietnam.

Article 2. Subjects of application

This Law applies to investors, agencies, organizations and individuals involved in business investment activities.

Article 3. Interpretation of terms

In this Law, the terms below are construed as follows:

1. *Investment policy approval* means a competent state agency's approval for project objectives, site, scope, schedule and duration; investors or forms of investor selection as well as special mechanisms and policies (if any) to implement an investment project.

2. *Investment registration agency* means a state agency competent to grant, modify and revoke investment registration certificates.

3. *National investment database* means a data set of investment projects on a national scope, which is connected to the database system of concerned agencies.

4. *Investment project* means a set of proposals on using medium- or long-term capital to carry out business investment activities in a specific geographical area within a specified period of time.

5. *Expanded investment project* means an investment project to develop an operating investment project by expanding its scope, raising its capacity, renewing technologies, reducing pollution or improving the environment.

6. *New investment project* means an investment project that is implemented for the first time or an investment project that is independent from an operating investment project.

7. *Innovative start-up investment project* means an investment project that realizes start-up ideas based on the exploitation of intellectual property, technology and new business models, and is capable of rapid growth.

8. *Business investment* means the use of investment capital by investors to carry out business activities.

9. *Business investment conditions* means conditions that individuals and organizations shall satisfy when being involved in business investment activities in sectors and trades subject to conditional business investment.

10. *Market access conditions for foreign investors* means conditions that a foreign investor shall satisfy in order to invest in sectors and trades included in the list of sectors and trades restricted market access for foreign investors as prescribed in Clause 2, Article 9 of this Law.

11. *Investment registration certificate* means a paper or an electronic document acknowledging information on an investment project registered by an investor.

12. *National investment information system* means a professional information system used to monitor, evaluate and analyze the situation of investment nationwide to serve state management work and support investors in carrying out business investment activities.

13. *Offshore investment activities* means an investor's transfer of investment capital from Vietnam to foreign countries and use of the profits earned from this investment capital to carry out business investment activities abroad.

14. *Business cooperation contract* (hereinafter referred to as BCC contract) means a contract signed between investors for business cooperation and profit or product distribution in accordance with law without establishing an economic organization.

15. *Export-processing zone* means an industrial park specialized in producing exports and providing services for export production and export activities.

16. *Industrial park* means an area which has a delimited geographical boundary and is specialized in producing industrial goods and providing services for industrial production.

17. *Economic zone* means an area which has a delimited geographical boundary, consists of various functional sub-zones and is established for the purposes of investment attraction, socio-economic development and national defense and security safeguarding.

18. *Investor* means organizations and individuals carrying out business investment activities. Investors include domestic investors, foreign investors and

foreign-invested economic organizations.

19. *Foreign investor* means a foreign national or an organization established in accordance with foreign laws that carries out business investment activities in Vietnam.

20. *Domestic investor* means a Vietnamese national or an economic organization without any members or shareholders being foreign investors.

21. *Economic organization* means an organization established and operating in accordance with Vietnam's law. Economic organizations include enterprises, cooperatives, unions of cooperatives and other organizations that carry out business investment activities.

22. *Foreign-invested economic organization* means an economic organization having members or shareholders being foreign investors.

23. *Investment capital* means money and other assets as prescribed in civil law and international treaties to which the Socialist Republic of Vietnam is a contracting party to carry out business investment activities.

Article 4. Application of the Law on Investment and relevant laws

1. Business investment activities in the Vietnamese territory must comply with the Law on Investment and other relevant laws.

2. If there are any different provisions between the Law on Investment and other laws promulgated before the effective date of this Law regarding sectors and trades banned from business investment or sectors and trades subject to conditional business investment, the provisions of this Law must prevail.

The provisions regarding sectors and trades banned from business investment or sectors and trades subject to conditional business investment in other laws must be consistent with Article 6 and the Appendices of this Law.

3. If there are any different provisions between the Law on Investment and other laws promulgated before the effective date of the Law on Investment regarding the order and procedures for business investment and investment assurance, the provisions of this Law must prevail, except for the following cases:

a) The investment, management and use of the state investment capital in enterprises comply with the Law on Management and Use of State Capital in Production and Business in Enterprises;

b) The competence, order and procedures for public investment and the management and use of public investment capital comply with the Law on Public Investment;

c) The competence, order and procedures for investment and project implementation; laws governing project contracts; investment guarantee, state capital management mechanism applied directly to investment projects by the public-private partnership form comply with the Law on Public-Private Partnership Investment;

d) The implementation of investment projects on construction, houses and urban areas complies with the Law on Construction, the Law on Housing and the Law on Real Estate Business after a competent agency has approved investment policies as well as adjustment of investment policies in accordance with the provisions of the Law on Investment;

dd) The competence, order, procedures and conditions for business investment comply with the Law on Credit Institutions, the Law on Insurance Business and the Law on Petroleum;

e) The competence, order, procedures, conditions for business investment or activities on securities and securities market on Vietnam's securities market comply with the Law on Securities.

4. If other laws promulgated after the effective date of the Law on Investment need specific provisions on investment that are different from the provisions of this Law, these laws must specify the specific contents that comply with or not comply with the Law on Investment, and the contents that comply with these laws.

5. With regard to a contract in which at least one party is a foreign investor or an economic organization as prescribed in Clause 1, Article 23 of the Law on Investment, the parties may agree in the contract on application of foreign laws or international investment practices if such agreements are not contrary to the provisions of Vietnam's law.

Article 5. Business investment policies

1. Investors are entitled to carry out business investment activities in the sectors and trades that are not banned by this Law. With regard to the sectors and trades subject to conditional business investment, investors must satisfy the business investment conditions as prescribed by law.

2. Investors may decide by themselves and take self-responsibility for business investment activities in accordance with this Law and other relevant laws; and are entitled to access and use credit capital sources and support funds and use land and other natural resources in accordance with law.

3. Investors shall be suspended, ceased or terminated from business investment activities if such activities cause harms or threaten to cause harms to national defense and security.

4. The State shall recognize and protect investors' ownership of property, investment capital, incomes and other lawful rights and interests.

5. The State shall treat investors equally; adopt policies to encourage and create favorable conditions for investors to carry out business investment activities for sustainable economic development.

6. The State shall respect and implement international treaties related to business investment to which the Socialist Republic of Vietnam is a

contracting party.

Article 6. Sectors and trades banned from business investment

1. To prohibit the following business investment activities:

a) Trade in narcotic substances specified in Appendix I to this Law;

b) Trade in chemicals and minerals specified in Appendix II to this Law;

c) Trade in specimens of wild fauna and flora species extracted from nature specified in Appendix I to the Convention on International Trade on Endangered Species of Wild Fauna and Flora; natural specimens of endangered, precious and rare forest fauna, flora and aquatic fauna species of Group I extracted from nature specified in Appendix III of this Law;

d) Prostitution;

dd) Trafficking in humans, human tissues, corpses, organs and fetuses;

e) Business activities related to human cloning;

g) Trade in firecrackers;

h) Debt collection services.

2. The production and use of the products specified at Points a, b and c, Clause 1 of this Article in analysis, testing, scientific research, healthcare, pharmaceutical production, criminal investigation, and national defense and security safeguarding must comply with the Government's regulations.

Article 7. Sectors and trades subject to conditional business investment

1. Sectors and trades subject to conditional business investment are sectors and trades in which business investment activities must meet certain conditions for the reason of national defense and security, social order and safety, social ethics or community well-being.

2. The list of sectors and trades subject to conditional business investment is provided in Appendix IV to this Law.

3. Conditions for business investment in the sectors and trades specified in Clause 2 of this Article shall be prescribed in laws, the National Assembly’s resolutions, the Standing Committee of the National Assembly’s ordinances and resolutions, the Government’s decrees, and international treaties to which the Socialist Republic of Vietnam is a contracting party. Ministries, ministerial-level agencies, People's Councils, People's Committees at all levels, other agencies, organizations and individuals may not promulgate regulations on business investment conditions.

4. Conditions for business investment must be prescribed in accordance with the reasons specified in Clause 1 of this Article and must ensure publicity, transparency and objectiveness, and save time and compliance costs for investors.

5. Provisions on business investment conditions must contain the

following contents:

a) Subjects and scope of applying business investment conditions;

b) Forms of applying business investment conditions;

c) Contents of business investment conditions;

d) Dossiers, order and administrative procedures to comply with business investment conditions (if any);

dd) State management agencies and agencies competent to handle administrative procedures for business investment conditions;

e) Effective period of licenses, certificates, credentials or other written confirmation or approval (if any).

6. Conditions for business investment shall be applied in the following forms:

a) License;

b) Certificate;

c) Credential;

d) Written confirmation and approval;

dd) Other requirements that individuals and economic organizations must meet in order to carry out business investment activities without the written certification of competent agencies.

7. Sectors and trades subject to conditional business investment and business investment conditions applicable to such sectors and trades shall be published on the national enterprise registration information portal.

8. The Government shall stipulate in detail the publication and control of business investment conditions.

Article 8. Amendment and supplementation of sectors and trades banned from business investment, the list of sectors and trades subject to conditional business investment, and business investment conditions

1. Based on socio-economic conditions and state management requirements in each period, the Government shall review the sectors and trades banned from business investment and the list of sectors and trades subject to conditional business investment, and propose the National Assembly to amend and supplement Articles 6, 7 and Appendices to this Law according to fast-track order and procedures.

2. The amendment and supplementation of sectors and trades subject to conditional business investment or business investment conditions must comply with the provisions of Clauses 1, 3, 4, 5 and 6, Article 7 of this Law.

Article 9. Sectors, trades and market access conditions for foreign investors

1. Foreign investors shall be entitled to apply the market access conditions as prescribed for domestic investors, except for the cases specified in Clause 2 of this Article.

2. Based on laws, the National Assembly's resolutions, the Standing Committee of the National Assembly's ordinances and resolutions, the Government's decrees, and international treaties to which the Socialist Republic of Vietnam is a contracting party, the Government shall announce the list of sectors and trades restricted market access for foreign investors, including:

a) Sectors and trades are not allowed to access to the market;

b) Sectors and trades are subject to conditional market access.

3. Market access conditions for foreign investors prescribed in the list of sectors and trades restricted market access for foreign investors shall include:

a) Ratio of foreign investors' ownership of charter capital in economic organizations;

b) Form of investment;

c) Scope of investment;

d) Capability of investors and partners participating in investment activities;

dd) Other conditions as prescribed in laws, the National Assembly's resolutions, the Standing Committee of the National Assembly's ordinances and resolutions, the Government's decrees, and international treaties to which the Socialist Republic of Vietnam is a contracting party.

4. The Government shall stipulate in detail this Article.

Chapter II
INVESTMENT GUARANTEES

Article 10. Guarantee of property ownership

1. Lawful properties of investors shall be neither nationalized nor confiscated by administrative measures

2. In case the State compulsorily purchases or requisitions their properties for national defense or security reasons or in the national interests, in a state of emergency or in response to natural disaster, investors are entitled to payment or compensation in accordance with the law on compulsory purchase and requisition of properties and other relevant laws.

Article 11. Guarantee of business investment activities

1. The State may not compel investors to comply with the following requirements:

a) To prioritize purchasing and using domestic goods and services or to purchase goods and services from domestic goods producers or service providers;

b) To reach a certain rate of exported goods or services; to limit the quantity, value or types of goods and services exported or domestically produced or provided;

c) To import goods in a quantity or value corresponding to the quantity or value of exported goods or to balance foreign currencies by using export earnings to meet import demand;

d) To reach a certain localization rate for domestically produced goods;

dd) To reach a certain level or value in domestic research and development activities;

e) To supply goods or provide services at a specific place in the country or abroad;

g) To locate their head offices at places requested by competent state agencies.

2. Based on socio-economic development conditions and demands for investment attraction in each period, the Prime Minister shall decide on the application of the State's guarantee forms to implement investment projects subject to investment policy decision by the National Assembly or the Prime Minister, and other important infrastructure development investment projects.

The Government shall stipulate in detail this Clause.

Article 12. Guarantee of the right to transfer properties of foreign investors abroad

After fulfilling their financial obligations towards the Vietnamese State in accordance with law, foreign investors may transfer abroad the following properties:

1. Investment capital and investment liquidation proceeds;

2. Incomes from business investment activities;

3. Money and other assets under their lawful ownership.

Article 13. Guarantee of business investment in case of change of law

1. In case a new legal document introduces new investment incentives or investment incentives higher than those currently applied to investors, investors may enjoy such incentives for the remaining incentive enjoyment period of their projects, except for special investment incentives for investment projects specified at Point a, Clause 5, Article 20 of this Law.

2. In case a new legal document introduces investment incentives lower than those currently applied to investors, investors may continue enjoying the investment incentives according to previous regulations for the remaining incentive enjoyment period of their projects.

3. The provision of Clause 2 of this Article does not apply to cases of change of law for the reason of national defense and security, social order and safety, social ethics, community well-being or environmental protection.

4. In cases where investors are not permitted to continue enjoying investment incentives according to Clause 3 of this Article, they may be considered and settled by one or some of the following measures:

a) Deducting the actual damage suffered by investors from their taxable incomes;

b) Adjusting operational objectives of investment projects;

c) Supporting investors to remedy their damage.

5. With regard to the investment guarantee measures prescribed in Clause 4 of this Article, investors shall file written requests within 03 years from the effective date of the new legal document.

Article 14. Settlement of disputes in business investment activities

1. Disputes over business investment activities in Vietnam shall be settled through negotiation and conciliation. In case negotiation and conciliation fail, disputes shall be settled at an arbitration or a court according to Clauses 2, 3 and 4 of this Article.

2. Disputes over business investment activities in the Vietnamese territory between domestic investors and foreign-invested economic organizations or between domestic investors or foreign-invested economic organizations and competent state agencies shall be settled by a Vietnamese arbitration or court, except the cases prescribed in Clause 3 of this Article.

3. Disputes between investors of whom at least one party is a foreign investor or an economic organization specified at Points a, b and c, Clause 1, Article 23 of this Law may be settled by one of the following agencies and organizations:

a) Vietnamese Court;

b) Vietnamese arbitration;

c) Foreign arbitration;

d) International arbitration;

dd) Arbitration set up by the parties in dispute.

4. Disputes over business investment activities in the Vietnamese territory between foreign investors and competent state agencies shall be settled by a Vietnamese arbitration or court, unless otherwise agreed in contracts or provided by a treaty to which the Socialist Republic of Vietnam is a contracting party.

Chapter III

INVESTMENT INCENTIVES AND SUPPORTS

Article 15. Forms of, and subjects eligible for, investment incentives

1. Forms of investment incentives shall include:

a) Preferential enterprise income tax, including the application of enterprise income tax rates lower than ordinary tax rates with a definite period of time or for the whole implementation duration of investment projects; tax exemption or reduction and other incentives in accordance with the Law on Enterprise Income Tax;

b) Exemption from import duty on goods imported to create fixed assets; and materials, supplies and components imported for production in accordance with the Law on Import and Export Duty;

c) Exemption from or reduction of land use levy, land rental, and land use tax;

d) Quick depreciation or increase in deductible expenses upon calculating taxable income.

2. Subjects eligible for investment incentives shall include:

a) Investment projects in the sectors and trades eligible for investment incentives prescribed in Clause 1, Article 16 of this Law;

b) Investment projects in the geographical areas eligible for investment incentives prescribed in Clause 2, Article 16 of this Law;

c) Investment projects capitalized at VND 6,000 billion or more, disbursing at least VND 6,000 billion within 03 years after obtaining an investment registration certificate or investment policy decision, and satisfying one of the following criteria: having a total minimum turnover of VND 10,000 billion per year within the latest time limit of 03 years from the year when having turnover, or employing over 3,000 employees;

d) Social housing construction investment project; investment projects in rural areas employing 500 workers or more; investment projects employing employees with disabilities in accordance with the law on persons with disabilities;

dd) High-tech enterprises, science and technology enterprises, science and technology organizations; projects with technology transfer on the list of technologies encouraged for transfer in accordance with the law on technology transfer; technology incubator, science and technology business incubator in accordance with the law on high technologies and the law on science and technology; enterprises producing and supplying technologies, equipment, products and services serving the requirements of environmental protection in accordance with the law on environmental protection;

e) Innovative start-up investment projects, innovation centers, research and development centers;

g) Business investment in product distribution chains of small- and medium-sized enterprises; business investment in technical facilities supporting small- and medium-sized enterprises, and small- and medium-sized business incubators; business investment in a working area to support small- and medium-sized enterprises in their innovative start-ups in accordance with the law on supporting small and medium-sized enterprises.

3. Investment incentives shall be applied to new investment projects and expanded investment projects.

4. Specific incentive level applicable to each type of investment incentives shall comply with the law on tax, accounting and land.

5. Investment incentives prescribed at Points b, c and d, Clause 2 of this Article must not apply to the following investment projects:

a) Investment project on exploiting minerals;

b) Investment projects on production and trading of goods and services subject to special consumption tax under the Law on Special Consumption Tax, except for projects on manufacturing automobiles, aircraft and yachts;

c) Commercial housing construction investment projects in accordance with the law on housing.

6. Investment incentives shall be applied for a definite term and based on the results of project implementation by the investor. Investors must meet conditions for enjoying incentives as prescribed by law during their investment incentive enjoyment period.

7. Investment projects which satisfy the conditions for enjoying various investment incentives, including investment incentives prescribed in Article 20 of this Law, may enjoy the highest investment incentive level.

8. The Government shall stipulate in detail this Article.

Article 16. Sectors and trades eligible for investment incentives, geographical areas eligible for investment incentives

1. Sectors and trades eligible for investment incentives shall include:

a) Hi-tech activities, hi-tech supporting industrial products, research and development activities, manufacture of products created by scientific and technological results in accordance with the law on science and technology;

b) Production of new materials, new energies, clean energies and renewable energies; manufacture of products with an added value of at least 30% and energy-saving products;

c) Manufacture of electronic products, key mechanical products, agricultural machinery, automobiles and automobile parts; shipbuilding;

d) Manufacture of products on the list of supporting industrial products prioritized for development;

dd) Manufacture of information technology products, software and digital content;

e) Cultivation and processing of agricultural, forest and fishery products; forest planting and protection; salt production; marine fishing and fishing logistic services; production of plant varieties and animal breeds and biotech products;

g) Waste collection, treatment, recycling or re-use;

h) Investment in development, operation and management of infrastructure facilities; development of mass transit in urban centers;

i) Pre-school education, general education, vocational education and higher education;

k) Medical examination and treatment; production of drugs and materials for drug manufacture and preservation; scientific research into preparation technologies and biotechnologies for producing new drugs; manufacturing; manufacture of medical equipment;

l) Investment in physical training and sports facilities for people with disabilities or professional athletes; protection and promotion of the value of cultural heritages;

m) Investment in geriatric centers, psychiatric centers, treatment centers for orange agent victims; nursing homes for the elderly, people with disabilities, orphans and street children;

n) People's credit funds and microfinance institutions;

o) Manufacture of goods and provision of services creating or participating in industry value chains and clusters.

2. Geographical areas eligible for investment incentives shall include:

a) Geographical areas with difficult or extremely difficult socioeconomic conditions;

b) Industrial parks, export-processing zones, hi-tech parks and economic zones.

3. Based on the sectors, trades and geographical areas eligible for investment incentives prescribed in Clauses 1 and 2 of this Article, the Government shall promulgate, revise and supplement the list of sectors and trades eligible for investment incentives and the list of geographical areas eligible for investment incentives.

Article 17. Procedures for application of investment incentives

Based on the subjects specified in Clause 2, Article 15 of this Law, written approval of investment policy (if any), investment registration certificate (if any), and other relevant laws, investors shall determine by themselves the investment incentives and carry out the procedures for enjoying such investment incentives at the tax agency, finance agency, customs agency and other competent agency, depending on each type of investment incentive.

Article 18. Forms of investment support

1. Forms of investment support shall include:

a) Support for development of technical and social infrastructure systems inside or outside project fences;

b) Support for human resources training and development;

c) Credit support;

d) Support for access to production and business grounds; support for production and business establishments' relocation under state agencies' decisions;

dd) Support for science, technique and technology transfer;

e) Support for market development and information provision;

g) Support for research and development.

2. Based on the socio-economic development orientations and the ability to balance the state budget in each period, the Government shall stipulate in detail the forms of investment support specified in Clause 1 of this Article for hi-tech enterprises, science and technology enterprises, science and technology organizations, enterprises investing in agriculture and rural areas, enterprises investing in education, law dissemination and other subjects.

Article 19. Support for development of infrastructure systems of industrial parks, export-processing zones, hi-tech parks and economic zones

1. Based on the decided or approved planning in accordance with the law on planning, ministries, ministerial-level agencies and provincial-level People's Committees shall formulate plans on development investment in, and organize the construction of, technical and social infrastructure systems outside the fences of industrial parks, export-processing zones, hi-tech parks and functional sub-zones of economic zones.

2. The State shall support part of development investment capital from the state budget and preferential credit capital for the comprehensive development of technical and social infrastructure systems inside and outside the fences of industrial parks in areas meeting with difficult or extremely difficult socio-economic conditions.

3. The State shall support part of development investment capital from the state budget and preferential credit capital and apply other methods to raise capital for the construction of technical and social infrastructure systems within economic zones and hi-tech parks.

Article 20. Special investment incentives and supports

1. The Government shall decide on the application of special investment

incentives and supports in order to encourage the development of investment projects with great impacts on socio-economic development.

2. Subjects eligible for special investment incentives and supports specified in Clause 1 of this Article shall include:

a) Newly-established investment projects (including the expansion of such newly-established projects), innovation centers, research and development centers having a total investment capital of VND 3,000 billion or more, disbursing at least VND 1,000 billion within 03 years after obtaining an investment registration certificate or investment policy decision; national innovation center established under the decision of the Prime Minister;

b) Investment projects in sectors and trades eligible for special investment incentives having a total investment capital of VND 30,000 billion or more, disbursing at least VND 10,000 billion within 03 years after obtaining an investment registration certificate or investment policy decision.

3. Levels and duration for special incentive application shall comply with the Law on Enterprise Income Tax and the Law on Land.

4. Special investment support shall comply with the forms as prescribed in Clause 1, Article 18 of this Law.

5. Special investment incentives and supports prescribed in this Article shall not apply to the following cases:

a) Investment projects that have been granted investment certificates, investment registration certificates or investment policy decisions before the effective date of this Law;

b) Investment projects prescribed in Clause 5, Article 15 of this Law.

6. The Government shall propose the National Assembly to decide on application of investment incentives other than those provided for in this Law and other laws in cases where it is necessary to encourage the development of a particularly important investment project or a special administrative - economic unit.

7. The Government shall stipulate in detail this Article.

Chapter IV
INVESTMENT ACTIVITIES IN VIETNAM

Section 1
FORMS OF INVESTMENT

Article 21. Forms of investment

1. Investment in establishment of economic organizations.

2. Investment in the form of capital contribution, share purchase and capital contribution purchase.

3. Implementation of investment projects.

4. Investment in the form of BCC contract.

5. New forms of investment and economic organizations in accordance with the Government's regulations.

Article 22. Investment in establishment of economic organizations

1. Investors shall establish economic organizations in accordance with the following provisions:

a) Domestic investors establishing economic organizations shall comply with the law on enterprises and the laws corresponding to each type of economic organization;

b) Foreign investors establishing economic organizations shall meet the market access conditions for foreign investors as prescribed in Article 9 of this Law;

c) Before establishing economic organizations, foreign investors must have investment projects and follow the procedures for issuance as well as amendment of investment registration certificates, except for the establishment of small- and medium-sized start-up enterprises and innovative start-up investment funds in accordance with the law on supporting small and medium-sized enterprises.

2. From the date of being granted an enterprise registration certificate or other documents of equivalent legal validity, economic organizations established by foreign investors may be investors implementing projects in accordance with regulations in the investment registration certificate.

Article 23. Implementation of investment activities by foreign-invested economic organizations

1. When making investment in establishment of other economic organizations; contribution of capital to, or purchase of shares or capital contributions at, other economic organizations; or investment in the form of BCC, economic organizations must meet the conditions and shall carry out investment procedures according to regulations applicable to foreign investors if falling into one of the following cases:

a) Having more than 50% of their charter capital held by a foreign investor(s), or having a majority of their general partners being foreign individuals, for economic organizations being partnership companies;

b) Having more than 50% of their charter capital held by an economic organization(s) prescribed at Point a of this Clause;

c) Having more than 50% of their charter capital held by a foreign investor(s) and an economic organization(s) prescribed at Point a of this Clause.

2. When making investment in establishment of other economic organizations; contribution of capital to, or purchase of shares or capital contributions at, other economic organizations; or investment in the form of BCC, economic organizations other than those specified at Points a, b and c, Clause 1 of this Article must meet the conditions and shall carry out investment procedures according to regulations applicable to domestic investors.

3. In case a foreign-invested economic organization already established in Vietnam has a new investment project, it may carry out procedures to implement such project without having to establish a new economic organization.

4. The Government shall stipulate in detail the order and procedures for investment in establishment of economic organizations and implementation of investment activities of foreign investors and foreign-invested economic organizations.

Article 24. Investment in the form of capital contribution, share purchase and capital contribution purchase

1. Investors are entitled to contribute capital to, and purchase shares and capital contributions at, economic organizations.

2. Foreign investors making investment in the form of capital contribution to, or purchase of shares or capital contributions at, economic organizations shall satisfy the following regulations and conditions:

a) Meeting the market access conditions for foreign investors as prescribed in Article 9 of this Law;

b) Ensuring national defense and security in accordance with this Law;

c) Complying with the law on land regarding conditions for receiving land, land use rights, and conditions for land use on islands and border or coastal communes, wards and towns.

Article 25. Forms of capital contribution, share purchase and capital contribution purchase

1. Investors may contribute capital to economic organizations in the following forms:

a) Purchasing initially or additionally issued shares of joint stock companies;

b) Contributing capital to limited liability companies and partnerships;

c) Contributing capital to other economic organizations not prescribed at Points a and b of this Clause.

2. Investors may purchase shares or capital contributions at economic organizations in the following forms:

a) Purchasing shares of joint stock companies from such companies or their shareholders; b) Purchasing capital contributions of members of limited liability companies to become members of such companies; c) Purchasing capital contributions of capital-contributing members in partnerships to become capital-contributing members of such partnerships;

d) Purchasing capital contributions of members of other economic organizations not prescribed at Points a, b and c of this Clause.

Article 26. Procedures for investment in the form of capital contribution, share purchase and capital contribution purchase

1. Investors contributing capital, purchasing shares or capital contributions at economic organizations must meet the conditions and shall carry out procedures for changing members and shareholders in accordance with the provisions of law corresponding to each type of economic organization.

2. Investors shall carry out procedures to register the contribution of capital to, or purchase of shares or capital contributions at, economic organizations before changing members or shareholders if falling into one of the following cases:

a) The capital contribution or share purchase or capital contribution purchase leads to an increase in the ownership ratio of foreign investors at economic organizations conducting business of sectors and trades with conditional market access to foreign investors;

b) The capital contribution or share or capital contribution purchase leads to a situation whereby foreign investors or the economic organizations prescribed in Points a, b and c, Clause 1, Article 23 of this Law hold more than 50% of charter capital of the concerned economic organizations in the following cases: increasing the ownership ratio of foreign investors' charter capital from below or equal to 50% to over 50%; increasing the ownership ratio of foreign investors' charter capital when foreign investors hold more than 50% of charter capital in economic organizations;

c) Foreign investors contributing capital, purchasing shares or capital contributions at economic organizations have land use right certificates on islands and border or coastal communes, wards and townships; and other areas affecting national defense and security.

3. Investors who do not fall into the cases prescribed in Clause 2 of this Article shall carry out the procedures for changing shareholders or members in accordance with relevant laws when contributing capital, purchasing shares or capital contributions at economic organizations. In cases where investors wish to register for contributing capital, purchasing shares or capital contributions at economic organizations, they shall comply with Clause 2 of this Article.

4. The Government shall stipulate in detail the dossiers, order and procedures for capital contribution, share purchase and capital contribution purchase of economic organizations prescribed in this Article.

Article 27. Investment in the form of a BCC contract

1. BCC contracts signed between domestic investors shall comply with the civil law.

2. For BCC contracts signed between domestic investors and foreign investors or between foreign investors, the procedures for grant of investment registration certificates prescribed in Article 38 of this Law shall be carried out.

3. Parties to a BCC contract shall form a coordinating board to perform the BCC. Functions, tasks and powers of the coordinating board shall be agreed by the parties.

Article 28. Contents of a BCC

1. A BCC must have the following principal contents:

a) Names, addresses and competent representatives of contractual parties; transaction address or address of the project implementation site;

b) Objectives and scope of business investment activities;

c) Contributions of contractual parties and distribution of business investment results between the parties;

d) Schedule and duration of contract performance;

dd) Rights and obligations of contractual parties;

e) Modification, transfer and termination of the contract;

g) Liabilities for breaches of contract, method of dispute settlement.

2. In the course of performing a BCC, contractual parties may agree to use assets created from their business cooperation to establish enterprises in accordance with the law on enterprises.

3. Parties to a BCC contract have the right to agree on other contents which must not be contrary to law.

Section 2

INVESTMENT POLICY APPROVAL AND INVESTOR SELECTION

Article 29. Investor selection for investment project implementation

1. Investor selection shall be carried out through one of the following methods:

a) Auctioning land use rights in accordance with the Law on Land;

b) Bidding to select investors in accordance with the Law on Bidding;

c) Approving the investors as prescribed in Clause 3 and Clause 4 of this Article.

2. After the investment policy approval, the investor selection for investment project implementation according to Points a and b, Clause 1 of this Article shall be conducted, except for cases where investment projects are not included in the cases eligible for investment policy approval.

3. In cases where only one person registers to participate in land use right auction or the land use right auction fails in accordance with the law on land or only one investor registers to participate in bidding for investor selection in accordance with the law on bidding, competent agencies shall carry out procedures for approving investor when the investor meets the conditions prescribed by relevant laws.

4. With regard to investment projects eligible for investment policy approval, competent agencies shall approve both investment policies and investors without auctioning land use rights or bidding for investor selection in the following cases:

a) Investors have the right to use land, except for cases where the State recovers land for national defense and security purposes or for socio-economic development in the national and public interests in accordance with the law on land;

b) Investors that receive transfer, capital contribution, lease agricultural land use rights to implement non-agricultural production and business investment projects are not included in the cases where the State recovers land in accordance with the law on land;

c) Investors implement investment projects in industrial parks and hi-tech zones;

d) Other cases that are not subject to auctions or biddings as prescribed by law.

5. The Government shall stipulate in detail this Article.

Article 30. Competence of the National Assembly to make investment policy approval

The National Assembly shall approve investment policies for the following investment projects:

1. Projects with great environmental impacts or a latent possibility of causing serious environmental impacts, including:

a) Nuclear power facilities;

b) Investment projects requiring change of use purposes of land under special-use forests, headwater protection forests or border protection forests of 50 hectares or larger; wind-break, sand-break and tide-break protection forests, sea encroachment forests of 500 hectares or larger; production forests of 1,000 hectares or larger;

2. Investment projects requiring change of the use purpose of at least 500 hectares of paddy fields with 02 or more crops;

3. Investment projects requiring relocation and resettlement involving 20,000 or more people in mountainous regions or 50,000 or more people in other regions;

4. Investment projects requiring application of special mechanisms and policies subject to decision by the National Assembly.

Article 31. Competence of the Prime Minister to make investment policy approval

Except for investment projects prescribed in Article 30 of this Law, the Prime Minister shall approve investment policies for the following projects:

1. An investment project does not distinguish capital sources in one of the following cases:

a) Investment projects requiring relocation and resettlement involving 10,000 or more people in mountainous regions or 20,000 or more people in other regions;

b) New construction investment projects, including: airports and airfields; runways of airports and airfields; passenger terminals of international airports; cargo terminals of airports and airfields with an annual capacity of at least 01 million tons;

c) New investment projects on commercial operation of air transport;

d) New construction investment projects: ports and port areas belonging to special seaports; ports and port areas with investment capital of VND 2,300 billion or more belonging to class I seaports;

dd) Investment projects on petroleum exploitation and processing;

e) Investment projects with betting and casino business, except for prize-winning electronic games for foreigners;

g) Investment projects on house building (for sale, lease, hire purchase) and urban areas in the following cases: investment projects with land use area of 50 hectares or larger, or less than 50 hectares but having a population of 15,000 or more in urban areas; investment projects with land use area of 100 hectares or larger, or less than 100 hectares but having a population of 10,000 or more in non-urban areas; investment projects irrespective of the land area and population within the protection scope of relics recognized by competent authorities as national monuments or special national monuments;

h) Investment project on building and commercial operation of infrastructure of industrial parks and export processing zones.

2. Investment projects of foreign investors in the field of telecommunications service provision with network infrastructure, forest

plantation, publishing and press;

3. Investment projects subject to investment policy approval by two or more provincial-level People's Committees;

4. Other projects subject to investment policy approval or investment decision by the Prime Minister in accordance with law.

Article 32. Competence of provincial-level People’s Committees to make investment policy approval

1. Except for investment projects prescribed in Articles 30 and 31 of this Law, provincial-level People's Committees shall approve investment policy for the following projects:

a) Investment projects requiring land allocation or land lease by the State not through auction, bidding or transfer, projects requiring change of land use purposes, except for cases of allocation land, land lease and permission for change of land use purposes of households and individuals not subject to written approval by provincial-level People's Committees in accordance with the law on land;

b) Investment projects on house building (for sale, lease, hire purchase) and urban areas in the following cases: investment projects with land use area of less than 50 hectares having a population of less than 15,000 people in urban areas; investment projects with a land use area of less than 100 hectares having a population of less than 10,000 people in non-urban areas; and investment projects irrespective of the land area and population within areas of restricted development or historical inner city (defined in urban planning projects) of special-grade urban areas;

c) Investment projects on building and commercial operation of golf course;

d) Investment projects of foreign investors and foreign-invested economic organizations implemented on islands and border or coastal communes, wards and townships; and other areas affecting national defense and security.

2. With regard to investment projects specified at Points a, b and d, Clause 1 of this Article and implemented in industrial parks, export-processing zones, hi-tech parks or economic zones in accordance with planning approved by competent agencies, the investment policies shall be approved by management boards of industrial parks, export-processing zones, hi-tech parks and economic zones.

3. The Government shall stipulate in detail this Article.

Article 33. Dossiers and appraisal contents of application for investment policy approval

1. A dossier of application for investment policy approval of a project prepared by an investor shall include:

a) A written request for the investment project implementation, including commitment to bear all costs and risks in case where the project fails to be approved;

b) Documents about the investor's legal status;

c) Documents proving the financial capacity of the investor, including at least one of the following documents: the investor's financial statements in the last 02 years; parent companies' or financial institutions' commitment to financial support; guarantee of the investor's financial capacity; and other documents proving the investor's financial capacity;

d) Investment project proposals, including the following main contents: the investor or forms of investor selection, investment objectives, investment scope, investment capital and capital raising methods, investment implementation site, duration and schedule, information about land use status quo at the site of project implementation, proposal for land use demand (if any) and labor demand, proposal for investment incentives, socio-economic impacts and benefits of the project, preliminary assessment of environmental impacts (if any) in accordance with the law on environmental protection.

In case where the law on construction provides for the preparation of pre-feasibility study report, the investor may submit such pre-feasibility study report instead of the investment project proposal;

dd) In case where an investment project does not require land allocation, land lease, and permission for change of land use purposes by the State, a copy of the document proving land use right or other documents proving the right to use the site for investment project implementation shall be submitted;

e) An explanation about the technology used in the investment project for the project subject to appraisal and consultation with technology in accordance with the law on technology transfer;

g) A BCC contract for the investment project in the form of BBC contracts;

h) Other documents related to the investment project as well as requirements on conditions and capacity of the investor as prescribed by law (if any).

2. A dossier of application for investment policy approval of a project prepared by a competent state agency shall include:

a) A submission report for investment policy approval;

b) Investment project proposals, including the following main contents: investment objectives, investment scope, investment capital, investment implementation site, duration and schedule, socio-economic impacts and benefits of the project; information about the land use status quo at the site of project implementation, conditions for land recovery for the project subject to land recovery, expected land use demand (if any); preliminary assessment of environmental impacts (if any) in accordance with the law on environmental protection; expected form of investor selection and conditions for the investor (if any); special mechanisms and policies (if any).

In case where the law on construction provides for the preparation of pre-feasibility study report, competent state agencies may submit such pre-feasibility study reports instead of investment project proposals.

3. Appraisal contents of application for investment policy approval shall include:

a) Assessment of the investment project's conformity with national, regional, provincial, and urban planning and special administrative - economic unit planning (if any);

b) Assessment of land use demand;

c) Preliminary assessment of the investment project's socio-economic benefits; preliminary assessment of the investment project's environmental impacts (if any) in accordance with the law on environmental protection;

d) Assessment of investment incentives and conditions for enjoying investment incentives (if any);

dd) Assessment of technologies used in the investment project for projects subject to assessment or consultation on technologies in accordance with the law on technology transfer;

e) Assessment of the investment project's conformity with the objectives, orientations for urban development, housing development programs and plans; preliminary investment divergence plans to ensure comprehensive requirements; preliminary structure of housing products and reserve of land for social housing development; preliminary plans on construction investment, urban infrastructure management inside and outside the project scope for investment projects on construction of houses and urban areas.

4. Appraisal contents of application for both investment policy and investor approval shall include:

a) Assessment contents as prescribed in Clause 3 of this Article;

b) The ability to meet the conditions of land allocation or land lease in case of land allocation or land lease not through auction of land use rights or bidding for investor selection; the ability to meet conditions for changing the land use purposes for projects requiring change of land use purposes;

c) Assessment of the foreign investor's satisfaction of market access conditions (if any);

d) Other conditions for investors in accordance with relevant laws.

5. The Government shall stipulate in detail this Article.

Article 34. Order and procedures for investment policy approval by the National Assembly

1. The dossiers specified in Clauses 1 and 2, Article 33 of this Law shall

be submitted to the Ministry of Planning and Investment.

2. Within 15 days after receiving a complete dossier, the Ministry of Planning and Investment shall report to the Prime Minister to set up a State Appraisal Council.

3. Within 90 days after establishment, the State Appraisal Council shall appraise the investment project dossier and make an appraisal report covering the contents prescribed in Article 33 of this Law for submission to the Government.

4. At least 60 days before the opening date of a National Assembly session, the Government shall make and send the dossier of application for investment policy approval to the National Assembly's agency in charge of verification.

5. A dossier of application for investment policy approval shall include:

a) The submission report of the Government;

b) Dossiers specified in Clause 1 of this Article;

c) The appraisal report of the State Appraisal Council;

d) Other relevant documents.

6. Appraisal contents of application for investment policy approval shall include:

a) The satisfaction of the criteria for determining the project to be subject to investment policy approval by the National Assembly;

b) The necessity for project implementation;

c) The investment project's conformity with national strategy and planning, regional, provincial and urban planning, and special administrative-economic unit planning (if any);

d) Investment implementation objectives, scope, site, duration and schedule, land use demand, plan on ground clearance, relocation and resettlement, plan on selection of major technologies and environmental protection solutions;

dd) Total investment capital and capital sources;

e) Assessment of the investment project's socio-economic benefits, assurance of national defense and security and sustainable development;

g) Special mechanisms and policies, investment incentives and supports and conditions for application (if any).

7. The Government and related agencies, organizations and persons shall provide sufficient information and documents to serve the verification; explain matters related to the project when so requested by the National Assembly's agency in charge of verification.

8. The National Assembly shall consider approving a resolution on

approval of investment policies, which contains the contents specified in Clause 1, Article 3 of this Law.

9. The Government shall stipulate in detail the order and procedures for appraisal by the State Appraisal Council.

Article 35. Order and procedures for investment policy approval by the Prime Minister

1. The dossiers specified in Clauses 1 and 2, Article 33 of this Law shall be submitted to the Ministry of Planning and Investment.

2. Within 03 working days after receiving a complete dossier, the Ministry of Planning and Investment shall send the dossier to related state agencies for opinion on the matters prescribed in Article 33 of this Law.

3. Within 15 days after receiving the dossier, consulted agencies shall send their opinions on the matters falling within the scope of their state management to the Ministry of Planning and Investment.

4. Within 40 days after receiving the dossier, the Ministry of Planning and Investment shall appraise the investment project dossier and make an appraisal report covering the contents prescribed in Article 33 of this Law for submission to the Prime Minister for investment policy approval.

5. The Prime Minister shall consider and issue an investment policy approval covering the contents prescribed in Clause 1, Article 3 of this Law.

6. With regard to the investment projects specified in Clause 3, Article 31 of this Law, the Prime Minister shall designate a provincial or municipal investment registration agency to grant an investment registration certificate to the whole project.

7. The Government shall stipulate in detail the order and procedures for appraisal of investment projects subject to investment policy approval by the Prime Minister.

Article 36. Order and procedures for investment policy approval by provincial-level People's Committees

1. The dossiers specified in Clauses 1 and 2, Article 33 of this Law shall be submitted to an investment registration agency.

Within 35 days after receiving the investment project dossier, the investment registration agency shall notify results to the investor

2. Within 03 working days after receiving a complete investment project dossier, the investment registration agency shall send the dossier to related state agencies for appraisal of the matters prescribed in Article 33 of this Law.

3. Within 15 days after receiving the investment project dossier, consulted state agencies shall send their appraisal opinions on the matters within the scope of their state management to the investment registration agency.

4. Within 25 days after receiving the investment project dossier, the investment registration agency shall make an appraisal report covering the appraisal contents prescribed in Article 33 of this Law, and submit it to the provincial People's Committee.

5. Within 07 working days after receiving the dossier and appraisal report, the provincial-level People's Committee shall make investment policy approval. In case of refusal, it shall issue a written reply clearly stating the reason.

6. The provincial-level People's Committee shall consider and issue investment policy approval covering the contents specified in Clause 1, Article 3 of this Law.

Section 3

PROCEDURES FOR GRANT, MODIFICATION AND REVOCATION OF INVESTMENT REGISTRATION CERTIFICATES

Article 37. Cases of carrying out procedures for grant of investment registration certificates

1. Cases for which investment registration certificates are required:

a) Investment projects of foreign investors;

b) Investment projects of the economic organizations prescribed in Clause 1, Article 23 of this Law.

2. Cases for which investment registration certificates are not required:

a) Investment projects of domestic investors;

b) Investment projects of the economic organizations prescribed in Clause 2, Article 23 of this Law;

c) Investment in the form of contribution of capital to, or purchase of shares or capital contributions at, economic organizations.

3. With regard to the investment projects prescribed in Articles 30, 31 and 32 of this Law, domestic investors and economic organizations prescribed in Clause 2, Article 23 of this Law shall implement investment projects after obtaining investment policy approvals.

4. If wishing to have investment registration certificates for investment projects prescribed at Points a and b, Clause 2 of this Article, investors shall carry out the procedures for grant of investment registration certificates prescribed in Article 38 of this Law.

Article 38. Procedures for grant of investment registration certificates

1. With regard to investment projects subject to investment policy approval prescribed in Articles 30, 31 and 32 of this Law, investment

registration agencies shall grant investment registration certificates to investors within the following time limits:

a) Within 05 working days after receiving written investment policy and investor approval for investment projects subject to grant of investment registration certificates;

b) Within 15 days after receiving the investor's application for grant of investment registration certificates for investment projects other than those prescribed in Point a of this Clause.

2. With regard to investment projects not subject to investment policy approval prescribed in Articles 30, 31 and 32 of this Law, investors may be granted investment registration certificates if they satisfy the following conditions:

a) Having investment projects not included in the sectors and trades banned from business investment;

b) Having specific site to implement investment projects;

c) Having investment projects in accordance with the planning specified at Point a, Clause 3, Article 33 of this Law;

d) Satisfying the conditions on investment rate on a land area and the amount of labor employed (if any);

dd) Satisfying market access conditions for foreign investors.

3. The Government shall stipulate in detail conditions, dossiers, order and procedures for grant of investment registration certificates.

Article 39. Competence to grant, modify and revoke investment registration certificates

1. Management boards of industrial parks, export-processing zones, hi-tech parks or economic zones shall receive, grant, modify and revoke investment registration certificates with regard to investment projects located in their industrial parks, export-processing zones, hi-tech parks or economic zones, except for the cases prescribed in Clause 3 of this Article.

2. Provincial-level Planning and Investment Departments shall grant, modify and revoke investment registration certificates with regard to investment projects located outside industrial parks, export-processing zones, hi-tech parks and economic zones, except those prescribed in Clause 3 of this Article.

3. Investment registration agencies where investors locate or intend to locate their executive offices to implement investment projects shall grant, modify and revoke investment registration certificates for the following investment projects:

a) Investment projects implemented in 02 provincial or municipal-level administrative units;

b) Investment projects implemented both inside and outside industrial parks, export-processing zones, hi-tech parks or economic zones;

c) Investment projects implemented inside industrial parks, export-processing zones, hi-tech parks or economic zones where management boards of industrial parks, export processing zones, hi-tech parks, economic zones or economic zones have not yet been established, or that are not under the management scope of management boards of industrial parks, export-processing zones, hi-tech parks or economic zones.

4. Investment project dossier-receiving agencies are agencies competent to grant investment registration certificates, except for the cases specified in Articles 34 and 35 of this Law.

Article 40. Contents of an investment registration certificate

1. Title of the investment project

2. The investor.

3. Code of the investment project.

4. Project implementation site and to-be-used land area.

5. Objectives and scope of the investment project.

6. Investment capital of the investment project (including capital contributed by the investor and mobilized capital.

7. Operation duration of the investment project.

8. Implementation schedule of the investment project, including:

a) Schedule of capital contribution and raising;

b) Implementation schedule of the key operational objectives of the investment project; in case where the investment project is divided into different stages, the certificate must also specify the implementation schedule for each stage.

9. Forms of investment incentives and supports and grounds and conditions for application (if any).

10. Conditions on the investor implementing the investment project (if any).

Article 41. Modification of investment projects

1. In the course of investment project implementation, the investor shall be entitled to modify the objectives, transfer a part or the whole of the investment project, merge projects, or divide or split a project into multiple projects, or use the right to use land and assets on the land of the investment project to contribute capital for enterprise establishment, business cooperation or other contents, and must comply with the provisions of law.

2. The investor shall carry out the procedures for modifying investment registration certificate in case where the investment project modification changes contents of the investment registration certificate.

3. The investor with the project having approved investment policy must carry out the procedures for approval of investment policy modification in one of the following cases:

a) Changing the objectives specified in the investment policy approval document; supplementing objectives subject to investment policy approval;

b) Changing the land use area of more than 10% or larger than 30 hectares, changing the investment site;

c) Changing a total investment capital of 20% or more, changing the investment project scope;

d) Extending the investment project implementation schedule, with the total project investment duration exceeding 12 months compared to the investment project implementation schedule specified in the initial investment policy approval;

dd) Modifying operation duration of the investment project;

e) Changing the technologies appraised and consulted during the investment policy approval;

g) Changing the investor of the project approved for both investment policy and the investor before the project is exploited or operated, or changing conditions for the investor (if any).

4. With an investment project approved for investment policy, the investor must not modify the project implementation schedule for more than 24 months compared to the project implementation schedule specified in the initial investment policy approval, except for one of the following cases:

a) Remedying consequences in force majeure circumstances in accordance with the civil law and the land law;

b) Modifying the investment project implementation schedule as the investor is entitled to land allocation, land lease, or permission for change of land use purposes by the State in a slow manner;

c) Modifying the investment project implementation schedule at the request of state management agencies or state agencies that implement administrative procedures in a slow manner;

d) Modifying the investment project due to planning changes by state agencies;

dd) Changing the objectives specified in the investment policy approval; supplementing the objectives subject to investment policy approval;

e) Increasing the total investment capital of 20% or more that changes the investment project scope.

5. State agencies competent to approve investment policies shall be competent to approve modification of investment policies.

In case where an application for investment project modification makes the investment project fall within the investment policy approval competence of higher-level agencies, such agencies shall be competent to approve the the investment policy modification as prescribed in this Article.

6. The order and procedures for investment policy modification shall comply with Articles 34, 35 and 36 of this Law regarding the modified contents.

7. In case where an application for investment project modification makes an investment project subject to investment policy approval, the investor must carry out the procedures for investment policy approval before modifying the investment project.

8. The Government shall stipulate in detail this Article.

Section 4

IMPLEMENTATION OF INVESTMENT PROJECTS

Article 42. Principles of implementation of investment projects

1. With regard to investment projects subject to investment policy approval, the investment policy approval must be carried out before investors implement the investment projects.

2. With regard to investment projects subject to grant of investment registration certificates, investors shall carry out the procedures for granting investment registration certificates before implementing the investment projects.

3. Investors shall comply with the this Law, the law on planning, land, environment, construction, labor, fire prevention and fighting, other relevant laws, written investment policy approval (if any) and investment registration certificate (if any) in the course of implementing the investment projects.

Article 43. Security for implementation of investment projects

1. Investors shall make deposits or have bank guarantees for their deposit obligations to secure the implementation of investment projects that require land allocation, land lease, permission for change of land use purposes by the State, except for the following cases:

a) Investors win the land use right auction to implement investment projects subject to land allocation by the Sate, and land use fee collection or land lease with one-off rental payment for the entire lease term;

b) Investors win the bidding to implement investment projects subject to land use;

c) Investors are entitled to land allocation or land lease by the State on the basis of receiving transfer of investment projects that have made deposits or have completed capital contribution or capital raising in accordance with the schedule specified in written investment policy approvals or investment registration certificates;

d) Investors are entitled to land allocation or land lease by the State to implement investment projects on the basis of receiving transfer of land use rights and properties attached to land of other land users.

2. A deposit for securing the implementation of an investment project must be equal between 01% and 03% of the investment capital of such project, depending on scope, characteristics and implementation schedule of each investment project. In case where an investment project consists of different stages, the deposit shall be paid and reimbursed according to each stage of investment project implementation, except for cases ineligible for deposit reimbursement.

3. The Government shall stipulate in detail this Article.

Article 44. Operation duration of investment projects

1. The operation duration of an investment project in an economic zone must not exceed 70 years.

2. The operation duration of an investment project outside an economic zone must not exceed 50 years. With regard to an investment project in a geographical area meeting with difficult socio-economic conditions or in a geographical area meeting with extremely difficult socio-economic conditions or a project with a large investment capital amount to be slowly recovered, its operation duration may be longer but must not exceed 70 years.

3. With regard to an investment project using land allocated or leased by the State to which the handover of land is delayed, the delay duration shall not be included in its operation duration and implementation schedule.

4. Upon the expiry of the operation duration of an investment project, if wishing to continue implementing the investment project and satisfying the conditions prescribed by law, an investor may be considered for extension of the operation duration of the investment project but it must not exceed the maximum time limit specified in Clauses 1 and 2 of this Article, except for the following investment projects:

a) Investment projects using outdated technology with a latent possibility of causing serious environmental impacts or resource intensive;

b) Investment projects in cases where investors must transfer without asset compensation to the Vietnamese State or Vietnamese parties.

5. The Government shall stipulate in detail this Article.

Article 45. Determination of investment capital value; appraisal of investment capital value; expertise of machines, equipment, technology lines

1. Investors shall be responsible for ensuring the quality of machines, equipment and technological lines for implementing investment projects in

accordance with law.

2. Investors shall determine by themselves the investment capital value of investment projects after such investment projects are put into operation and exploitation.

3. In case of necessity to secure the performance of state management over science and technology or to determine tax bases, competent state management agencies may request independent appraisal of investment capital value as well as quality and value of machines, equipment and technological lines after such investment projects are put into operation and exploitation.

4. Investors must bear appraisal expenses in cases where appraisal results lead to an increase in tax obligations to the State.

5. The Government shall stipulate in detail this Article.

Article 46. Transfer of investment projects

1. An investor may transfer the whole or part of an investment project to another when meeting the following conditions:

a) The whole or part of the transferred investment project is not subject to operation termination prescribed in Clause 1 and Clause 2 Article 48 of this Law;

b) Foreign investors receiving transfer of the whole or part of the investment project must satisfy the conditions specified in Clause 2, Article 24 of this Law;

c) Conditions as prescribed in the law on land in case where the project is transferred together with land use rights and assets attached to land;

d) Conditions as prescribed in the laws on housing and real estate business in case of transfer of house building investment projects or real estate projects;

dd) Conditions as prescribed in the written investment policy approval, investment registration certificate or other relevant laws (if any);

e) When transferring an investment project, in addition to complying with this Article, state enterprises shall comply with the law on management and use of state capital invested in production and business at such enterprises before implementing investment project modification.

2. In cases where the transfer conditions prescribed in Clause 1 of this Article are satisfied, the procedures for transfer of all or part of an investment project shall be carried out as follows:

a) With regard to an investment project that is approved by the investor as prescribed in Article 29 of this Law and the investment project is granted an investment registration certificate, the investor shall follow the procedures to modify such investment project in accordance with Article 41 of this Law;

b) With regard to an investment project other than those specified in Point a of this Clause, the transfer of an investment project or transfer of ownership of assets to the investor who receives the investment project after the transfer is made in accordance with civil law, business, real estate business and other relevant laws.

Article 47. Cessation of investment projects

1. To suspend the operation of an investment project, the investor shall notify in writing such suspension to the investment registration agency. In case of suspending the operation of an investment project due to a force majeure event, the investor is entitled to exemption from land rental and reduction of land use levy in the suspension period to remedy the consequences of such event.

2. The state management agency in charge of investment shall decide on cessation of some or all operations of an investment project in the following cases:

a) For protection of relics, vestiges, antiques or national treasures in accordance with the Law on Cultural Heritages;

b) For remedy of environmental violations at the request of the state management agency in charge of environment;

c) For implementation of labor safety assurance measures at the request of the state management agency in charge of labor;

d) Under a court decision or judgment or an arbitral award;

dd) The investor fails to properly comply with the investment policy approval and investment registration certificate and repeats violations even after having been administratively handled.

3. The Prime Minister shall decide on cessation of some or all operations of an investment project in case the implementation of such project threatens to affect national defense and security at the proposal of the Ministry of Planning and Investment.

4. The Government shall stipulate in detail conditions, order, procedures and duration of cessation of the investment projects specified in this Article.

Article 48. Termination of investment projects

1. An investor shall terminate investment activities or an investment project in the following cases:

a) The investor decides to terminate the operation of the investment project;

b) Under the termination conditions specified in the contract or enterprise charter;

c) The investment project's operation duration expires.

6. The investment registration agency shall terminate some or all operations of an investment project in the following cases:

a) The investment project falls into one of the cases specified in Clause 2 and Clause 3, Article 47 of this Law while the investor is unable to address the reason for operation suspension; b) The investor is not allowed to continue using the investment location and fails to carry out procedures for changing the investment location within 06 months from disallowing the continued use of the investment location, except for the cases specified at Point d of this Clause;

c) The investment project has ceased operation and past 12 months from the date of cessation, the investment registration agency cannot contact the investor or his/her/its lawful representative;

d) The investment project falls into the cases where the land is recovered as it is not put to use or is put to use in a slow manner in accordance with the land law;

dd) The investor do not make deposits or have no guarantee of deposit obligations as prescribed by law for the investment project subject to security of implementation of investment projects;

e) The investor makes investment activities on the basis of artificial civil transactions in accordance with the civil law;

g) Under a court decision or judgment or an arbitral award.

7. With regard to investment projects subject to investment policy approval, the investment registration agency shall terminate the operation of the investment project after obtaining the investment policy approval agency's opinion.

8. The investors shall themselves liquidate investment projects in accordance with the law on asset liquidation upon termination of investment projects, except for the cases specified in Clause 5 of this Article.

9. The handling of land use rights and assets attached to land upon the termination of investment projects shall comply with the law on land and other relevant laws.

10. The investment registration agency shall decide on revocation of the investment registration certificate in case where the investment project terminates its operation according to Clause 2 of this Article, except for case of terminating part of the investment project.

11. The Government shall stipulate in detail the order and procedures for termination of investment projects specified in this Article.

Article 49. Establishment of executive offices of foreign investors under BBC contracts

1. Foreign investors under BCC contracts may establish their executive offices in Vietnam for contract performance. The foreign investors under BCC contracts shall decide on locations of these offices to meet contract performance requirements.

2. Executive offices of foreign investors under BCC contracts must have their own seals; and may open accounts, recruit employees, sign contracts and conduct business activities within the ambit of their rights and obligations stated

in the BCC contracts and their establishment registration certificates.

3. Foreign investors under BCC contracts shall submit dossiers of registration for establishment of executive offices to investment registration agencies of localities where these offices are to be located.

4. A dossier of registration for establishment of an executive office must comprise:

a) The written registration for establishment of an executive office, stating the name and address of the Vietnam-based representative office (if any) of the foreign investor under the BCC; name and address of the executive office; contents, duration and scope of operation of the executive office; and full name, place of residence and identity, citizen identity card or passport of the head of the executive office;

b) The decision of the foreign investor under the BCC on the establishment of the executive office;

c) A copy of the decision appointing the head of the executive office;

d) A copy of the BCC contract.

5. Within 15 days after receiving a dossier prescribed in Clause 4 of this Article, the investment registration agency shall grant an executive office operation registration certificate to the foreign investor under the BCC contract.

Article 50. Termination of operation of executive offices of foreign investors under BCC contracts

1. Within 07 working days after obtaining the decision on termination of the operation of his/her/its executive office, a foreign investor shall send a written notice of such termination to the investment registration agency of the locality where such office is based.

2. A written notice of termination of the operation of an executive office must comprise:

a) The decision on termination of the operation of the executive office, in case of termination ahead of schedule;

b) The list of creditors and paid debt amounts;

c) The list of employees and their rights and interests already settled;

d) The tax agency's certification of the investor's fulfillment of tax obligations;

dd) The social insurance agency's certification of the investor's fulfillment of social insurance-related obligations;

e) The operation registration certificate of the executive office;

g) A copy of the investment registration certificate;

h) A copy of the BCC contract.

3. Within 15 days after receiving the dossier specified in Clause 2 of this Article, the investment registration agency shall decide on revocation of the operation registration certificate of the executive office.

Chapter V
OFFSHORE INVESTMENT ACTIVITIES

Section 1
GENERAL PROVISIONS

Article 51. Principles of offshore investment activities

1. The State shall encourage investors to make offshore investment for exploiting, developing and expanding markets; increasing the export of goods and services and the earning of foreign currencies; accessing modern technologies, raising management capacity and having additional resources for national socio-economic development.

2. Investors carrying out overseas investment activities shall comply with this Law, other relevant laws, laws of host countries and territories (below referred to as host countries), and relevant international treaties; and take responsibility for the effectiveness of their overseas investment activities.

Article 52. Forms of offshore investment

1. Investors shall make offshore investment in the following forms:

a) Establishing economic organizations in accordance with the laws of host countries;

b) Performing investment in the form of overseas contracts;

c) Contributing capital to, and purchasing shares or capital contributions of foreign economic organizations to participate in the management of such economic organizations;

d) Purchasing and selling securities and other valuable papers or making investment via overseas securities investment funds or other intermediary financial institutions;

dd) Other forms of investment in accordance with the laws of host countries.

2. The Government shall stipulate in detail the form of investment prescribed at Point d, Clause 1 of this Article.

Article 53. Sectors and trades banned from offshore investment

1. Sectors and trades banned from business investment specified in Article

6 of this Law and relevant international treaties.

2. Sectors and trades with technologies and products banned from export in accordance with the law on foreign trade management.

3. Sectors and trades banned from business investment in accordance with the laws of the host country.

Article 54. Sectors and trades subject to conditional offshore investment

1. Sectors and trades subject to conditional offshore investment shall include:

a) Banking;

b) Insurance;

c) Securities;

d) Press, broadcasting and television;

dd) Real estate business.

2. Conditions for offshore investment in the sectors and trades prescribed in Clause 1 of this Article are specified in laws, the National Assembly's resolutions, the Standing Committee of the National Assembly's ordinances and resolutions, the Government's decrees and international treaties on investment to which the Socialist Republic of Vietnam is a contracting party.

Article 55. Offshore investment capital sources

1. Investors shall be responsible for contributing capital and raising different capital sources to carry out overseas investment activities.

2. The borrowing of foreign currency loans and transfer of foreign-currency investment capital must comply with the conditions and procedures prescribed in the laws on banking, credit institutions and foreign exchange management.

3. Based on the objectives of the monetary policy and foreign exchange management policy in each period, the State Bank of Vietnam shall stipulate the provision of foreign-currency loans by credit institutions and foreign bank branches in Vietnam to investors under Clause 2 of this Article for making offshore investment.

Section 2

PROCEDURES FOR OFFSHORE INVESTMENT POLICY APPROVAL AND DECISION ON OFFSHORE INVESTMENT

Article 56. Competence to approve offshore investment policy

1. The National Assembly shall approve offshore investment policy for the following investment projects:

a) Offshore investment projects capitalized at VND 20 trillion or more;

b) Projects requiring special mechanisms or policies to be decided by the National Assembly.

2. Except for the cases prescribed in Clause 1 of this Article, the Prime Minister shall approve offshore investment policy for the following investment projects:

a) Offshore investment projects in the banking, insurance, securities, press, broadcasting, television and telecommunications sectors which are capitalized at VND 400 billion or more;

b) Offshore investment projects not referred to at Point a of this Clause which are capitalized at VND 800 billion or more.

3. Investment projects not falling into the cases prescribed in Clauses 1 and 2 of this Article shall be not subject to overseas investment policy approval.

Article 57. Dossier, order and procedures for the National Assembly to approve offshore investment policy

1. Investors submit an overseas investment project dossier to the Ministry of Planning and Investment, which must comprise:

a) A written registration of offshore investment;

b) Documents certifying the investor's legal status;

c) Investment project proposals, covering form, objectives, scale and location of investment; estimated investment capital, capital raising plan and structure of capital sources; project implementation schedule and investment stages (if any); and preliminary analysis of the project's investment effectiveness;

d) Documents proving the financial capacity of the investor, including at least one of the following documents: the investor's financial statements of the last 02 years; the parent company's commitment to providing financial support; a financial institution's commitment to providing financial support; guarantee for the investor's financial capacity; other relevant documents proving investors' financial capacity;

dd) The investor's commitment to balancing foreign currency sources himself/herself/itself or a licensed credit institution's written commitment to allocating foreign currency amounts to the investor;

e) Documents of the representative agency approving the investor for offshore investment implementation and report on the internal evaluation of offshore investment proposals of state enterprises prescribed in Clause 1 Article 59 of this Law or offshore investment decision as prescribed in Clause 2, Article 59 of this Law;

g) For offshore investment projects in the sectors and trades specified in

Clause 1, Article 54 of this Law, the investor shall submit a competent state agency's written approval stating his/her/its satisfaction of the offshore investment conditions in accordance with relevant laws (if any).

2. Within 05 working days after receiving a complete dossier, the Ministry of Planning and Investment shall submit to the Prime Minister for decision on the establishment of the State Appraisal Council.

3. Within 90 days from the date of its establishment, the State Appraisal Council shall appraise it and make an appraisal report for submission to the Prime Minister. An appraisal report must cover:

a) The conditions for grant of an offshore investment registration certificate as prescribed in Article 60 of this Law;

b) The investor's legal status;

c) The necessity to make offshore investment;

d) The project's compliance with Clause 1, Article 51 of this Law;

dd) The form, scale and location of investment; investment project implementation schedule; overseas investment capital and capital sources;

e) Assessment of risks in the host country.

4. At least 60 days before the opening date of a National Assembly session, the Government shall send a dossier for offshore investment policy approval to the National Assembly's agency in charge of verification.

5. A dossier for offshore investment policy approval shall comprise:

a) The submission report of the Government;

b) The investment project dossier as prescribed in Clause 1 of this Article;

c) The State Appraisal Council's appraisal report;

d) Other relevant documents.

6. Appraisal contents of an overseas investment policy approval shall comprise:

a) The satisfaction of criteria for identifying investment projects subject to investment policy approval competence of the National Assembly;

b) The necessity to make overseas investment;

c) The project's compliance with Clause 1, Article 51 of this Law;

d) The form, scale and location of investment; investment project implementation schedule; overseas investment capital and capital sources;

dd) Assessment of risks in the host country.

e) Special mechanisms and policies, investment incentives and assistance and conditions (if any).

7. The Government and concerned agencies, organizations and persons shall provide sufficient information and documents to serve the verification; explain matters related to the investment project when so requested by the National Assembly's agency in charge of verification.

8. The National Assembly shall consider and decide on offshore investment policy, including the following contents:

a) The investor to implement the project;

b) Objectives and location of investment;

c) Overseas investment capital and capital sources;

d) Special mechanisms and policies, investment incentives and supports, and conditions for application (if any).

9. The Government shall stipulate in detail the order and procedures for appraisal of overseas investment project dossier by the State Appraisal Council.

Article 58. Dossier, order and procedures for the Prime Minister to decide on offshore investment policy

1. Investment project dossiers shall comply with Clause 1, Article 57 of this Law.

2. Investors shall submit the investment project dossier to the Ministry of Planning and Investment. Within 03 working days after receiving a complete dossier, the Ministry of Planning and Investment shall send the dossier to related state agencies for appraisal.

3. Within 15 days after receiving the investment project dossier, related agencies shall give appraisal opinions on the contents falling within their management competence.

4. Within 30 days after receiving the investment project dossier, the Ministry of Planning and Investment shall appraise it and make an appraisal report for submission to the Prime Minister. An appraisal report shall include the contents specified in Clause 3, Article 57 of this Law.

5. The Prime Minister shall consider and decide on offshore investment policy covering the contents prescribed in Clause 8, Article 57 of this Law.

Article 59. Decision on offshore investment

1. The decision on offshore investment by state enterprises shall comply with the law on management and use of state capital invested in production and business in enterprises and other relevant laws.

2. Offshore investment activities not falling into the cases prescribed in Clause 1 of this Article shall be decided by investors in accordance with the Law on Enterprises.

3. The investors and agencies deciding on offshore investment specified in Clauses 1 and 2 of this Article shall be responsible for their decisions on

offshore investment.

Section 3

PROCEDURES FOR GRANT, MODIFICATION AND INVALIDATION OF OFFSHORE INVESTMENT REGISTRATION CERTIFICATES

Article 60. Conditions for grant of offshore investment registration certificates

1. Offshore investment activities comply with the principles prescribed in Article 51 of this Law.

2. Offshore investment activities do not fall in the sectors or trades banned from offshore business investment as prescribed in Article 53 of this Law and satisfy the conditions for offshore investment in the sectors and trades subject to conditional offshore investment prescribed in Article 54 of this Law.

3. The investor commits to arranging foreign currency amounts by him/her/itself or has a licensed credit institution’s written commitment to arranging foreign currency amounts to make offshore investment;

4. There is an offshore investment decision as prescribed in Article 59 of this Law.

5. There is a tax agency’s document certifying the investor’s fulfillment of the tax payment obligation. The time of certification by the tax agency shall not exceed 03 months by the time of submission of the investment project dossier.

Article 61. Procedures for grant of offshore investment registration certificates

1. With regard to projects subject to offshore investment policy decision, within 05 working days after receiving an investment policy approval and a decision on offshore investment as prescribed in Article 59 of this Law, the Ministry of Planning and Investment shall grant an offshore investment registration certificate to the investor.

2. With regard to projects not referred to in Clause 1 of this Article, the investor shall submit a dossier of application for an investment registration certificate to the Ministry of Planning and Investment. Such a dossier must comprise:

a) A written registration for offshore investment;

b) Documents certifying the investor's legal status;

c) The offshore investment decision as prescribed in Article 59 of this Law;

d) The investor’s commitment to balancing foreign currency sources himself/herself/itself or a licensed credit institution's written commitment to allocating foreign currency amounts to the investor as prescribed in Clause 3, Article 60 of this Law;

dd) For offshore investment projects in the sectors and trades specified in Clause 1, Article 54 of this Law, the investor shall submit a competent state agency's written approval stating his/her/its satisfaction of the offshore investment conditions in accordance with relevant laws (if any).

3. In case the amount of foreign currency capital transferred abroad is equivalent to VND 20 billion or more, the Ministry of Planning and Investment shall send a written proposal to the State Bank of Vietnam to get opinions.

4. Within 15 days after receiving a dossier specified in Clause 2 of this Article, the Ministry of Planning and Investment shall grant an offshore investment registration certificate; In case of refusal, a written notice clearly stating the reasons shall be sent to the investor.

5. The Government shall stipulate in detail the order and procedures for appraisal of offshore investment projects; and the grant, modification and invalidation of offshore investment registration certificates.

Article 62. Contents of an offshore investment registration certificate

1. Code of the investment project.

2. The investor.

3. Title of the investment project and name of the foreign economic organization (if any).

4. Objectives and location of investment.

5. Investment forms, investment capital and capital sources, investment capital forms, schedule of offshore investment implementation.

6. Rights and obligations of the investor.

7. Investment incentives and supports (if any).

Article 63. Modification of offshore investment registration certificates

1. The investor shall carry out the procedures for modification of offshore investment registration certificates in the following cases:

a) Changing the Vietnamese investor;

b) Changing the form of investment;

c) Changing offshore investment capital; investment capital sources, and investment capital form;

d) Changing location of investment, for investment projects requiring investment location;

dd) Changing the main objectives of overseas investment activities;

e) Using profits of overseas investment as prescribed in Points a and b, Clause 1, Article 67 of this Law.

2. The investor must update on the National Investment Information System when changing contents other than those specified in Clause 1 of this Article.

3. A dossier for modification of offshore investment registration certificate must comprise:

a) A written request for modification of offshore investment registration certificate;

b) Documents certifying the investor's legal status;

c) A report on the project's operation situation by the time of submitting dossier of modification of offshore investment registration certificate;

d) The decision adjusting offshore investment activities in accordance with Article 59 of this Law or the documents specified at Point e, Clause 1, Article 57 of this Law;

dd) A copy of the offshore investment registration certificate;

e) The tax agency's written certification of the investor's fulfillment of the tax payment obligation in case of increase of offshore investment capital. The time of certification by the tax agency shall not exceed 03 months by the time of dossier submission.

4. The Ministry of Planning and Investment shall modify the offshore investment registration certificate within 15 days after receiving a complete dossier specified in Clause 3 of this Article.

5. With regard to projects subject to offshore investment policy approval, when adjusting the contents prescribed in Clause 1 of this Article and Clause 8, Article 57 of this Law, the Ministry of Planning and Investment shall carry out the procedures for offshore investment policy approval before modifying the offshore investment registration certificate.

6. In case an investor's request for modification of offshore investment registration certificate makes the project subject to offshore investment policy decision, the procedures for offshore investment policy approval shall be implemented before modifying the offshore investment registration certificate.

7. Agencies and persons competent to approve offshore investment policies shall be competent to approve modification of offshore investment policies. Agencies and persons competent to decide on offshore investment shall be competent to decide on adjustments to the contents of offshore investment decisions.

8. In case the request for modification of an investment project makes the investment project subject to the offshore investment policy approval competence of higher level agencies, such agencies may be competent to approve the modification of offshore investment policy.

Article 64. Termination of offshore investment registration certificates

1. An offshore investment registration certificate shall be invalidated in the following cases:

a) The investor decides to terminate the operation of the investment project;

b) The operation duration of the investment project expires in accordance with the laws of the host country;

c) Under the termination conditions stipulated in the contract and enterprise charter;

d) The investor transfers all of its offshore investment capital to a foreign investor;

dd) 24 months from the date of granting the offshore investment registration certificate have passed but the investor fails or is unable to implement the investment project according to the schedule registered with the state management agency and does not implement the procedures for modifying the implementation schedule of the investment project;

e) The overseas economic organization is dissolved or goes bankrupt in accordance with the laws of the host country;

g) Under a court decision or judgment or an arbitral award.

2. The investor shall be responsible for implementing the procedures for terminating the operation of investment projects in foreign countries according to the laws of the host country and implementing the procedures for terminating the validity of offshore investment registration certificates.

3. The Ministry of Planning and Investment shall terminate the validity of offshore investment registration certificates.

Section 4

IMPLEMENTATION OF OFFSHORE INVESTMENT ACTIVITIES

Article 65. Opening of offshore investment capital accounts

1. The investor shall open an offshore investment capital account at a licensed credit institution in Vietnam in accordance with the laws on foreign exchange management.

2. Offshore investment-related outbound and inbound transfers of money shall be conducted via an investment capital account prescribed in Clause 1 of this Article in accordance with the laws on foreign exchange management.

Article 66. Outbound transfer of investment capital

1. An investor may transfer abroad investment capital for carrying out investment activities when meeting the following conditions:

a) Having obtained an offshore investment registration certificate, except the case specified in Clause 3 of this Article;

b) The investment activities have been approved or licensed by a competent agency of the host country. In case the law of the host country does not require investment licensing or approval, the investor shall produce a paper proving his/her/its right to carry out investment activities in the host country;

c) Having a capital account as prescribed in Article 65 of this Law.

2. The outbound transfer of investment capital must comply with the laws on foreign exchange management, export and technology transfer and other relevant laws.

3. Investors may transfer abroad foreign currency amounts or goods, machinery and equipment for serving market survey, research and probing activities and other investment preparation activities under the Government's regulations.

Article 67. Use profits abroad

1. Investors may retain profits earned from offshore investment for reinvestment in the following cases:

a) Continuing to contribute overseas investment capital in case of insufficient contribution of capital as registered;

b) Increasing overseas investment capital;

c) Implementing new overseas investment projects.

2. Investors shall carry out the procedures for modifying offshore investment registration certificates in accordance with Article 63 of this Law for the cases prescribed at Points a and b, Clause 1 of this Article; and carry out the procedures for granting offshore investment registration certificates in accordance with Article 61 of this Law for the cases prescribed at Point c, Clause 1 of this Article.

Article 68. Inbound transfer of profits

1. Except the case of retaining profits under Article 67 of this Law, within 06 months from the date of issuance of a tax finalization statement or a paper of equivalent legal validity under the law of the host country, investors shall transfer all profits and other incomes earned from overseas investment activities to Vietnam.

2. Within the time limit specified in Clause 1 of this Article, if failing to transfer profits and other incomes to Vietnam, investors shall report in writing such to the Ministry of Planning and Investment and the State Bank of Vietnam. The time limit for inbound transfer of profits shall not exceed 12 months from

the expiry of the period specified in Clause 1 of this Article.

3. If the time limit prescribed in Clause 1 of this Article has passed but the investor fails to transfer profits to Vietnam as well as making a report or the extended time limit prescribed in Clause 2 of this Article has passed but the investor fail to transfer profits to Vietnam, they shall be handled in accordance with law.

Chapter VI

STATE MANAGEMENT OF INVESTMENT

Article 69. Responsibility for state management of investment

1. The Government shall perform the unified state management of investment in Vietnam and offshore investment from Vietnam. 2. The Ministry of Planning and Investment shall assist the Government in performing the unified state management of investment in Vietnam and offshore investment from Vietnam, and has the following tasks and powers:

a) To submit to the Government and the Prime Minister for approving strategies, plans and policies on investment in Vietnam and offshore investment from Vietnam;

b) To promulgate or submit to competent agencies for promulgation legal documents on investment in Vietnam and offshore investment from Vietnam;

c) To issue forms for carrying out procedures for investment in Vietnam and offshore investment from Vietnam;

d) To guide, disseminate, and organize, supervise, examine and evaluate the implementation of, legal documents on investment;

dd) To build and submit to competent agencies for promulgating mechanisms to resolve investors' problems and prevent disputes between the State and investors;

e) To review, evaluate and report on the situation of investment in Vietnam and offshore investment from Vietnam;

g) To build, manage and operate the national investment information systems;

h) To grant, modify and invalidate offshore investment registration certificates;

i) To perform the state management of industrial parks, export processing zones and economic zones;

k) To perform the state management of investment promotion and coordinate investment promotion activities in Vietnam and overseas;

l) To examine, inspect, supervise and evaluate investment activities, manage and coordinate in management of investment activities according to its competence;

m) To negotiate and conclude treaties related to investment activities;

n) To perform other tasks and exercise other powers related to management of investment activities as assigned by the Government or the Prime Minister.

3. Ministries and ministerial-level agencies shall, within the scope of their tasks and powers, shall coordinate with the Ministry of Planning and Investment in performing the task of State management of investment in Vietnam and offshore investment from Vietnam, including:

a) To coordinate with the Ministry of Planning and Investment, ministries and ministerial-level agencies in formulating laws and policies related to investment activities;

b) To assume the prime responsibility for, and coordinate with ministries and ministerial-level agencies in, formulating and promulgating laws, policies, standards and technical regulations, and guiding their implementation;

c) To submit to the Government for promulgation according to its competence investment conditions for the sectors and trades prescribed in Article 7 of this Law;

d) To assume the prime responsibility for, and coordinate with the Ministry of Planning and Investment in, formulating master plans, plans, and lists of investment-calling projects of their sectors; to organize sector-specific investment mobilization and promotion;

dd) To participate in appraising investment projects subject to investment policy decision in accordance with this Law and take responsibility for the appraisal contents within their functions and duties;

e) To supervise, assess, and conduct specialized inspection of, the satisfaction of the investment conditions, and perform the state management of investment projects falling within their competence;

g) To assume the prime responsibility for, and coordinate with provincial-level People's Committees, ministries and ministerial-level agencies in, settling difficulties and problems for investment projects under their state management; to guide the decentralization and authorization to management boards of industrial parks, export-processing zones, hi-tech parks or economic zones to perform state management tasks in these parks or zones;

h) To periodically evaluate the socio-economic effectiveness of investment projects falling within the scope of their state management and send evaluation reports to the Ministry of Planning and Investment;

i) To provide relevant information to build a national investment database; to maintain and update the investment management information systems in their assigned fields and integrate them into the national investment information systems.

4. Provincial-level People's Committees and investment registration agencies, within their tasks and powers, shall perform the state management over investment activities in Vietnam and offshore investment from Vietnam, including:

a) To coordinate with ministries and ministerial-level agencies in making and publicizing lists of investment-calling projects in localities;

b) To assume the prime responsibility for or participate in the appraisal of investment projects subject to investment policy approval as prescribed by this Law, and assume the responsibility for the appraisal contents within their functions and tasks; to assume the prime responsibility for carrying out procedures for grant, modification and revocation of investment registration certificates;

c) To perform the state management of investment projects in their localities;

d) To settle within their competence, or submit to competent authorities for settlement, difficulties and problems for investors;

dd) To periodically evaluate the effectiveness of investment activities in localities and send evaluation reports to the Ministry of Planning and Investment;

e) To provide relevant information for building a national investment database; to maintain and update the national investment information system;

g) To direct the organization, supervision and assessment of the implementation of the investment reporting regime.

5. Overseas Vietnamese representative missions shall supervise and support investment activities and protect lawful rights and interests of Vietnamese investors in host countries.

Article 70. Investment monitoring and evaluation

1. Investment monitoring and evaluation activities shall cover:

a) Monitoring and evaluation of investment projects;

b) Overall monitoring and evaluation of investment

2. Investment monitoring and evaluation responsibilities shall include:

a) State management agencies in charge of investment and specialized state management agencies shall conduct overall monitoring and evaluation of investment and monitoring and evaluation of investment projects under their management;

b) Investment registration agencies shall monitor and evaluate investment projects for which they have granted investment registration certificates.

3. Contents of monitoring and evaluation of investment projects shall include:

a) With regard to investment projects using state capital for business investment, state management agencies in charge of investment and specialized state management agencies shall monitor and evaluate the projects based on the contents and criteria approved under investment decisions;

b) With regard to projects using other capital sources, state management agencies in charge of investment and specialized state management agencies shall monitor and evaluate the projects' objectives and conformity with approved master plans and investment policy, investment schedule, and satisfaction of law-prescribed requirements on environmental protection and use of land and other natural resources;

c) Investment registration agencies shall monitor and evaluate the contents stated in investment registration certificates or investment policy approvals.

4. Contents of overall monitoring and evaluation of investment shall include:

a) Promulgation of legal documents detailing and guiding the implementation thereof; observance of the law on investment;

b) Situation of implementation of investment projects;

c) Evaluating investment results nationwide and of ministries, ministerial-level agencies and localities, and evaluating investment projects as decentralized;

d) Making recommendations on investment evaluation results and measures to handle problems and violations of the investment law to the same-level and superior state management agencies in charge of investment.

5. Evaluating agencies and organizations may themselves conduct evaluation or hire fully qualified and capable experts or consultancy organizations to do so.

6. The Government shall stipulate in detail this Article.

Article 71. National investment information systems

1. The national investment information systems shall include:

a) The national information system on domestic investment;

b) The national information system on foreign investment in Vietnam;

c) The national information system on offshore investment from Vietnam;

d) The national information system on investment promotion;

dd) The national information system on industrial parks and economic zones

2. The Ministry of Planning and Investment shall assume the prime responsibility for, and coordinate with related agencies in, building and

operating the national investment information systems on; building a national investment database and assessing the operation of these systems by central and local state management agencies in charge of investment.

3. State management agencies in charge of investment and investors shall update fully, promptly and accurately relevant information into the National Investment Information System.

4. Information on investment projects stored in the national investment information systems is legally valid as original information on investment projects.

Article 72. Reporting regime on investment activities in Vietnam

1. The reporting entities shall include:

a) Ministries, ministerial-level agencies and provincial-level People's Committees;

b) Investment registration agencies;

c) Investors and economic organizations that implement investment projects in accordance with this Law.

2. The periodical reporting regime shall be implemented as follows:

a) On a quarterly and annual basis, investors and economic organizations that implement investment projects shall report to local investment registration agencies and statistics offices on the situation of implementation of investment projects, covering disbursed investment capital, business investment results, information on labor, payment to the state budget, investment in research and development, environmental treatment and protection, and specialized indicators by field of operation;

b) On a quarterly and annual basis, investment registration agencies shall report to the Ministry of Planning and Investment and provincial-level People's Committees on the receipt of dossiers for application, and the grant, modification and revocation, of investment registration certificates, and on the operation of investment projects under their management;

c) On a quarterly and annual basis, provincial-level People's Committees shall review and report on the local investment situation to the Ministry of Planning and Investment;

d) On a quarterly and annual basis, ministries and ministerial-level agencies shall report on the grant, modification and revocation of investment registration certificates or other papers of equivalent validity (if any) within the scope of their management; and report on investment activities within the scope of their management to the Ministry of Planning and Investment for summarization and reporting to the Prime Minister;

dd) On an annual basis, the Ministry of Planning and Investment shall report to the Prime Minister on the investment situation nationwide and on the assessment of the implementation of the reporting regime by the agencies defined in Clause 1 of this Article.

3. Agencies, investors and economic organizations shall make reports in writing and via the national investment information systems.

4. Agencies, investors and economic organizations prescribed in Clause 1 of this Article shall make ad-hoc reports upon request of competent state agencies.

5. With regard to projects not required to have investment registration certificates, investors shall report them to investment registration agencies before commencing their implementation.

Article 73. Reporting regime on overseas investment activities

1. The reporting entities shall include:

a) Ministries and ministerial-level agencies responsible for managing offshore investment in accordance with law, and agencies representing state capital in enterprises;

b) Investors implementing offshore investment projects in accordance with this Law.

2. The reporting regime for subjects defined at Point a, Clause 1 of this Article shall comply with the following:

c) On an annual basis, reporting on the state management of offshore investment activities to the Ministry of Planning and Investment for summarization and reporting to the Prime Minister;

d) On an annual basis, the Ministry of Planning and Investment shall report to the Prime Minister on the situation of offshore investment.

3. The reporting regime of investors shall be implemented as follows:

a) Within 60 days from the date an investment project is approved or licensed in accordance with the law of the host country, an investor shall send a written notice of the implementation of overseas investment activities, enclosed with a copy of the written approval of the investment project or another paper proving his/her/its right to carry out investment activities in the host country, to the Ministry of Planning and Investment, the State Bank of Vietnam and the Vietnamese representative mission in the host country;

b) On a quarterly and annual basis, an investor shall send a report on the operation of the investment project to the Ministry of Planning and Investment, the State Bank of Vietnam and the Vietnamese representative mission in the host country;

c) Within 06 months from the date of issuance of a tax finalization statement or another paper of equivalent legal validity in accordance with the law of the host country, an investor shall send a report on the operation of the investment project, enclosed with the financial statement, tax finalization report or another paper of equivalent legal validity as prescribed by the law of the host country, to the Ministry of Planning and Investment, the State Bank of Vietnam, the Ministry of Finance, the Vietnamese representative mission in the host country and the concerned competent state management agency prescribed by this Law and other relevant laws;

d) With regard to offshore investment projects using state capital, investors shall concurrently implement the reporting regime prescribed at Point a, b or c of this Clause and the investment reporting regime prescribed in the law on management and use of state capital invested in production and business at enterprises.

4. The reports prescribed in Clauses 2 and 3 of this Article shall be made in writing and via the national investment information systems.

5. Agencies and investors specified in Clause 1 of this Article shall make ad-hoc reports at the request of competent state agencies to meet relevant state management requirements or settle arising problems related to investment projects.

Article 74. Investment promotion activities

1. The Government shall direct the elaboration and implementation of investment promotion policies and orientations in order to promote and facilitate investment activities by branches, regions and partners in accordance with strategies, planning, socio-economic development plans and objectives in each period; ensure the implementation of inter-regional and inter-regional investment promotion programs and activities associated with trade and tourism promotion.

2. The Ministry of Planning and Investment shall formulate and organize the implementation of national investment promotion programs and plans; coordinate inter-regional and inter-provincial investment promotion activities; monitor, supervise and evaluate the effectiveness of investment promotion nationwide.

3. Ministries, ministerial-level agencies and provincial-level People's Committees shall, within the scope of their duties and powers, formulate and organize the implementation of investment promotion plans and programs in fields and geographical areas under their management competence in accordance with strategies, master plans, socio-economic development plans and national investment promotion programs.

4. Funds for formulation and implementation of investment promotion programs shall be allocated from the state budget and other lawful support sources.

5. The Government shall stipulate in detail this Article.

Chapter VII

IMPLEMENTATION PROVISIONS

Article 75. Amendments and supplements to a number of articles of relevant laws on business investment

1. To amend and supplement a number of articles of the Law No. 65/2014/QH13 on Housing that has been amended and supplemented under the Law No. 40/2019 / QH14 as follows:

a) To amend and supplement Clause 2, Article 21 as follows:

"2. Having deposit capital or bank guarantees on deposit obligations to perform for each project in accordance with the laws on investment.";

b) To amend and supplement Point c, Clause 2, Article 22 as follows:

"c) Approving the investor in accordance with the Law on Investment. In cases where there are many approved investors, the determination of the investor shall comply with the Law on Construction.

The Government shall stipulate in detail this Point.";

c) To amend and supplement Clause 1, Article 23 as follows:

"1. Having the right to use lawful residential land and other types of land permitted by competent state agencies to change the land use purposes into residential land.";

d) To amend and supplement Clause 2, Article 170 as follows:

"2. With regard to other housing construction projects subject to investment policy approval in accordance with the Law on Investment, the provisions of the Law on Investment shall prevail.";

dd) To amend and supplement Clause 7, Article 175 as follows:

"7. Training and enforcing specialized and professional knowledge about housing development and management; stipulating the grant of certificates of completion of training course on apartment operation management; stipulating and recognizing the apartment classification.";

e) To annul Clause 3, Article 22 and Article 171.

2. To amend and supplement a number of articles of the Law No. 66/2014/QH13 on Real Estate Business as follows:

a) To amend and supplement Clause 1, Article 10 as follows:

"1. Real estate business organizations and individuals must establish enterprises or cooperatives (hereinafter collectively referred to as enterprises), except for the cases specified in Clause 2 of this Article.";

b) To amend and supplement Article 50 as follows:

"Article 50. Competence to permit the transfer of the whole or part of

real estate projects

1. With regard to real estate projects eligible for investor approval or grant of investment registration certificates in accordance with the Law on Investment, the competence and procedures for transfer of the whole or part of such projects shall comply with the Law on Investment.

2. With regard to real estate projects other than those specified in Clause 1 of this Article, the competence to permit the transfer of the whole or part of real estate projects shall be carried out as follows:

a) Provincial- and municipal-level People's Committees (hereinafter referred to as provincial-level People's Committees) shall decide to permit the transfer of the whole or part of real estate projects, for projects subject to investment decision by provincial-level People's Committees;

b) The Prime Minister shall decide to permit the transfer of the whole or part of real estate projects, for projects subject to investment decision by the Prime Minister.";

c) To add the opening paragraph before Clause 1, Article 51 as follows:

"Procedures for transfer of the whole or part of real estate projects prescribed in Clause 2, Article 50 of this Law shall be implemented as follows:".

3. To amend and supplement a number of points of Clause 2, Article 25 of the Law No. 55/2014/QH13 on Environmental Protection that has been amended and supplemented under the Law No. 35/2018/QH14 and the Law No. 39 /2019/QH14 as follows:

a) To amend and supplement Point a, Clause 2, Article 25 as follows:

"a) With regard to the subjects defined in Article 18 of this Law, competent agencies shall depend on preliminary environmental impact assessment to approve investment policies; an investor shall be only allowed to implement a project after such project is approved.

With regard to public investment projects, competent authorities shall depend on preliminary environmental impact assessment to decide on investment policies; depend on environmental impact assessment to make investment decisions for the subjects specified in Article 18 of this Law. The Government shall stipulate in detail the subjects and contents of preliminary environmental impact assessment;";

b) To amend and supplement Point dd, Clause 2, Article 25 as follows:

"dd) With regard to projects not defined in Points a, b, c and d of this Clause, competent agencies shall depend on preliminary environmental impact assessment to grant investment registration certificates, except for cases of granting investment registration certificates at the request of investors; investors must only be allowed implement the projects after the environmental impact assessment report is approved.".

4. To amend and supplement a number of articles of the Law No. 14/2008/QH12 on Enterprise Income Tax that has been amended and supplemented under the Law No. 32/2013/QH13 and the Law No. 71/2014/QH13 as follow:

a) To add Clause 5a after Clause 5, Article 13 as follows:

"5a. With regard to investment projects prescribed in Clause 2, Article 20 of the Law on Investment, the Prime Minister shall decide to apply a preferential tax rate of no more than 50% compared to the preferential tax rate specified in Clause 1 of this Article; the application duration of preferential tax rates shall not exceed 1.5 times compared with the time of application of preferential tax rates prescribed in Clause 1 of this Article and may be extended for no more than 15 years and must not exceed the duration of investment projects.";

b) To add Clause 1a after Clause 1, Article 14 as follows:

"1a. With regard to investment projects specified in Clause 2, Article 20 of the Law on Investment, the Prime Minister shall decide to apply tax exemption for no more than 06 years and reduce 50% of payable tax amount for no more than 13 consecutive years.";

5. To amend and supplement a number of articles of the Law on Cinematography No. 62/2006/QH11 that has been amended and supplemented under the Law No. 31/2009/QH12 and the Law No. 35/2018/QH14 as follows:

a) To annul Article 14, Article 15 and Clause 3, Article 30;

b) To delete the number "14" and the mark "," immediately after the number "14" in Article 55.

6. To annul Article 10 and Point a, Clause 2, Article 43 of the Law No. 30/2009/QH12 on Urban Planning, that has been amended and supplemented under the Law No. 77/2015/QH13, the Law No. 35/2018/QH14 and the Law No. 40/2019/QH14.

Article 76. Implementation provisions

1. This Law takes effect on January 01, 2021, except for the provisions of Clause 2 of this Article.

2. The provisions of Clause 3, Article 75 of this Law take effect on September 01, 2020.

3. The Law No. 67/2014/QH14 on Investment that has been amended and supplemented under the Law No. 90/2015/QH13, the Law No. 03/2016/QH14, the Law No. 04/2017/QH14, the Law No. 28/2018/QH14 and the Law No. 42/2019/QH14 ceases to be effective on the effective date of this Law, except for Article 75 of the Law No. 67/2014/QH14 on Investment.

4. Individuals being Vietnamese citizens may use their personal identification numbers to replace copies of people's identity cards, citizen identity cards, passports and other personal identification papers when carrying

out the administrative procedures stipulated in the Law on Investment and the Law on Enterprises in case where the national database on population is connected to the national database on investment and enterprise registration.

5. In case where legal documents refer to regulations on project approval decisions or investment policy decisions in accordance with the Law on Investment, the provisions on investment policy approval of this Law shall prevail.

Article 77. Transitional provisions

1. Investors that have obtained investment licenses, investment incentive certificates, investment certificates and investment registration certificates before the effective date of this Law may continue implementing these projects in accordance with such licenses or certificates.

2. Investors shall not be required to carry out procedures for investment policy approval in accordance with this Law for investment projects falling into one of the following cases:

a) Investors have obtained investment policy decisions, investment policy approval or investment approval in accordance with the laws on investment, housing, urban development, and construction before the effective date of this Law;

b) Investors have implemented the investment projects not subject to investment policy approval, investment policy decisions, investment approvals, and grant of investment registration certificates in accordance with the laws on investment, housing, urban development, and construction as prescribed by law before the effective date of this Law;

c) Investors have won the bidding for investor selection or the land use right auction before the effective date of this Law;

d) Projects have obtained investment incentive certificates, investment licenses, investment certificates, and investment registration certificates before the effective date of this Law.

3. In case of modification of investment projects prescribed in Clause 2 of this Article and modified contents subject to investment policy approval as prescribed in this Law, the procedures for investment policy approval or modification must be implemented in accordance with this Law.

4. Investment projects that have been implemented or approved and permitted to comply with the provisions of law before July 01, 2015, and are subject to the implementation of investment projects in accordance with this Law, such projects shall not be subject to deposits or bank guarantee on deposit obligations. In case where investors modify their objectives and implementation schedule of investment projects, and change the land use purposes after the effective date of this Law, they must make deposits or must have bank guarantees on deposit obligations in accordance with this Law.

5. Debt collection service agreements signed before the effective date of this Law cease to be effective on the effective date of this Law; contracting parties may carry out activities to liquidate the debt collection service agreements in accordance with the civil law and other relevant laws.

6. Foreign-invested economic organizations eligible for market access conditions that are more favorable than those prescribed in the list promulgated under Article 9 of this Law may continue applying the conditions in accordance with granted investment registration certificates.

7. The provisions of Clause 3, Article 44 of this Law shall be applied for both investment projects that are handed over land before the effective date of this Law and investment projects that have not been handed over yet.

8. In case where the compositions of dossier on administrative procedures are required by law to have investment registration certificates, written investment policy approval, and investment projects not subject grant of investment registration certificates and investment policy approval as prescribed in this Law, investors shall not be required to submit investment registration certificates or written investment policy approval.

9. With regard to localities facing difficulties in land allocation for development of houses, service facilities and public utilities for workers in industrial parks, competent state agencies may modify building plans of industrial parks (for industrial parks established before July 01, 2014) to reserve a part of land for development of houses, service facilities and public utilities for workers in industrial parks.

After modification of building plans, the land area for development of houses, service facilities and public utilities for workers in industrial parks must be outside the geographical boundaries of industrial parks and shall ensure environmental safety distance in accordance with the law on construction and other relevant laws.

10. Transition of offshore investment activities shall comply with the following provisions:

a) The provisions on the operation duration of offshore investment projects stated in their licenses or offshore investment certificates issued before July 01, 2015 cease to be effective;

b) Investors who have obtained licenses, offshore investment certificates and offshore investment registration certificates to carry out offshore investment in sectors and trades subject to conditional offshore investment in accordance with this Law may continue applying such granted licenses and certificates.

11. From the effective date of this Law, valid dossiers that have been received and expired but not yet returned results according to the Law No. 67/2014/QH13 on Investment amended and supplemented a number of articles under the Law No. 90/2015/QH13, the Law No. 03/2016/QH14, the Law No.

04/2017/QH14, the Law No. 28/2018/QH14 and the Law No. 42/2019/QH14 shall continue applying the provisions of the Law No. 67/2014/QH13 on Investment that have been amended and supplemented a number of articles under the Law No. 90/2015/QH13, the Law No. 03/2016/QH14, the Law No. 04/2017/QH14, the Law No. 28/2018/QH14 and the Law No. 42/2019/QH14.

12. The Government shall stipulate in detail this Article.

This Law was passed on June 17, 2020, by the XIV^th^ National Assembly of the Socialist Republic of Vietnam at its 9^th^ session.

CHAIRWOMAN OF THE NATIONAL ASSEMBLY

Nguyen Thi Kim Ngan

Appendix IV

LIST OF SECTORS AND TRADES SUBJECT TO CONDITIONAL BUSINESS INVESTMENT

No.	SECTORS AND TRADES
1	Making seals
2	Trading in supporting tools (including also repair services)
3	Trading in fireworks, excluding firecrackers
4	Trading in camouflaged sound recording, video recording and positioning devices and software
5	Trading in paintball guns
6	Trading in clothing and equipment for armed forces, military weapons, equipment, devices and vehicles exclusively used for national defense or security; components, parts, spare parts, supplies and equipment of special categories and their manufacturing technologies
7	Pawn services
8	Massage services
9	Trading in signaling devices of priority vehicles
10	Security services
11	Fire prevention and fighting services
12	Practicing law
13	Practicing notary public profession
14	Practicing the profession of judicial examination in the fields of finance, banking, construction, antiques, relics and copyright
15	Practicing the profession of property auctioneer
16	Practicing the profession of bailiff
17	Practicing management and liquidation of assets that if enterprises and cooperatives in the process of bankruptcy settlement
18	Accounting services
19	Auditing services
20	Tax procedure completion services
21	Customs clearance services

22	Trading in duty-free goods
23	Trading in bonded warehouse services and cargo consolidation locations
24	Trading in locations for customs clearance, gathering, inspection and supervision
25	Trading in securities
26	Trading securities registration, depository, clearing and settlement services by the Vietnam Securities Depository and Clearing Corporation, organizations of exchanges for listed securities and securities of other types
27	Insurance business
28	Re-insurance business
29	Brokerage of insurance and auxiliary activities
30	Insurance agency
31	Price appraisal services
32	Lottery business
33	Prize-winning electronic games for foreigners
34	Credit rating services
35	Casino business
36	Betting business
37	Voluntary pension fund management services
38	Petrol and oil trading
39	Gas trading
40	Commercial assessment services
41	Trading in industrial explosives (including also explosive destruction services)
42	Trading in explosive precursors
43	Dealing in sectors and trades involving the use of industrial explosives and explosive precursors
44	Blasting services

45	Trading in chemicals, except those banned under the International Convention on the Prohibition of the Development, Production, Stockpiling and Use of Chemical Weapons and their Destruction
46	Trading in liquors
47	Trading in tobacco products, tobacco materials or machinery and equipment of the tobacco industry
48	Trading in food subject to specialized management of the Ministry of Industry and Trade
49	Operation of goods exchanges
50	Electricity generation, transmission, distribution, wholesale, retail, and provision of consultancy services in the electricity industry
51	Rice export
52	Temporary import for re-export of excise tax-liable goods
53	Temporary import for re-export of frozen goods
54	Temporary import for re-export of goods on the list of used goods
55	Trading in minerals
56	Trading in precursors for industrial use
57	Goods purchase and sale activities and activities directly related to goods sale and purchase activities of foreign service suppliers in Vietnam
58	Trading in the mode of multi-level sale
59	E-commerce
60	Petroleum activities
61	Energy audit
62	Vocational training
63	Vocational training quality evaluation services
64	Vocational skill assessment services
65	Technical testing services of labor safety
66	Labor safety and sanitation training services
67	Employment services
68	Provision of guest worker services

69	Services of voluntary drug detoxification, tobacco detox, HIV/AIDS treatment, care for the elderly, people with disabilities and children
70	Labor outsourcing services
71	Road transportation
72	Car warranty and maintenance services
73	Car manufacturing, assembling and importing
74	Motor vehicle inspection services
75	Automobile driver training services
76	Traffic safety inspector training services
77	Vehicle driver testing services
78	Traffic safety inspection services
79	Waterway transportation
80	Inland waterway vessel building, conversion, repair and restoration services
81	Inland waterway vessel crewmember and operator training services
82	Vessel crewmember training and coaching, and vessel crewmember recruitment and supply
83	Waterway safety services
84	Sea transportation
85	Seagoing ship towage services
86	Import and demolition of used seagoing ships
87	Seagoing ship building, conversion and repair services
88	Commercial operation of seaport
89	Air transportation services
90	Provision of the services of designing, manufacturing, maintaining or testing aircraft, aircraft engines, aircraft propellers and other aircraft equipment and devices in Vietnam
91	Commercial operation of airports and airfields
92	Aviation services at airports and airfields
93	Flight assurance services

94	Aviation staff training and retraining services
95	Railway transportation
96	Commercial operation of railway infrastructure
97	Dealing in urban railway
98	Multimodal transportation services
99	Hazardous cargo transportation services
100	Pipeline transportation
101	Real estate business
102	Clean water business (water used in daily life)
103	Architectural services
104	Construction investment project management consultancy services
105	Construction surveying services
106	Construction designing and construction design appraisal services
107	Work construction supervision consultancy services
108	Work construction services
109	Construction activities of foreign contractors
110	Construction investment cost management services
111	Construction inspection services
112	Specialized construction testing services
113	Condominium operation management services
114	Services of management and operation of cremation facilities
115	Construction planning services
116	Trading in white asbestos products of the serpentine group
117	Postal services
118	Telecommunication services
119	Digital signature certification services
120	Operation of publishing houses
121	Printing services, except packaging
122	Publication distribution services

123	Social network services
124	Telecommunication and Internet –based game services
125	Pay radio and television services
126	News website development services
127	Processing, recycling, repair or renewal of used information technology products on the list of used information technology products banned from import for foreign partners
128	Provision of information content services on mobile telecommunications networks and the Internet
129	Domain name registering and maintaining services
130	Data center services
131	Electronic identification and authentication services
132	Trading in network information security products and services
133	Import publication distribution services
134	Civil cryptographic products and services
135	Trading in mobile phone jamming devices
136	Operation of pre-school institutions
137	Operation of general education institutions
138	Operation of higher education institutions
139	Operation of foreign-invested educational institutions, representative offices of foreign educational institutions in Vietnam, branches of foreign-invested educational institutions
140	Operation of continuing education institutions
141	Operation of specialized schools
142	Joint training with foreign partners
143	Education quality appraisal
144	Overseas study counseling services
145	Aquatic resource exploitation
146	Trading in aquatic products
147	Trading in aquatic and animal feed
148	Aquatic and animal feed assay services

149	Trading in bio preparations, microorganisms, chemicals and substances for treatment and improvement of aquaculture and husbandry environment
150	Building and converting fishing vessels
151	Registering fishing vessels
152	Training and retraining crew members of fishing vessels
153	Breeding and rearing of wild fauna or flora species prescribed in the appendices to the CITES and the list of endangered, precious and rare forest plants, animals and aquatic animals
154	Breeding and rearing ordinary forest animals
155	Import, export, re-export, transit, and introduction from the sea of natural specimens of species prescribed in the appendices to the CITES and lists of endangered, precious, rare forest plants, animals and aquatic animals
156	Import, export and re-export of samples of bred or reared animals or artificially propagated plants of species prescribed in the appendices to the CITES and lists of endangered, precious, rare forest plants, animals and aquatic animals
157	Processing, trading, transporting, advertising, displaying and storing specimens of fauna or flora species stipulated in the appendices to CITES and lists of endangered, precious, rare forest plants, animals and aquatic animals
158	Trading in plant protection drugs
159	Treatment of objects subject to plant quarantine
160	Plant protection drug assay services
161	Plant protection services
162	Trading in veterinary drugs, bio-preparations, vaccines, microorganisms and chemicals for use in animal health
163	Technical services in animal health
164	Testing and surgery services for animals
165	Vaccination, diagnosis, prescription, medical treatment and heath care services for animals
166	Veterinary drug testing and assay services (veterinary drugs include veterinary drugs, veterinary drugs for aquatic animals, vaccines, bio-preparations, microorganisms and chemicals for use in animal health and aquatic animal health)

167	Farm-based breeding
168	Slaughtering cattle and poultry
169	Trading in foods under the specialized management of the Ministry of Agriculture and Rural Development
170	Animals and animal product quarantine services
171	Trading in fertilizer
172	Fertilizer assay services
173	Trading in plant varieties and animal breeds
174	Trading in aquatic breeds
175	Services of assaying plant varieties and animal breeds
176	Services of assaying aquatic breeds
177	Services of testing and assaying bio-products, microorganisms, chemicals and environmental treatment and improvement substances for use in aquaculture and husbandry environment
178	Trading in genetically modified products
179	Medical examination and treatment services
180	Cosmetic surgery services
181	Trading in drugs
182	Manufacture of cosmetics
183	Trading in pesticides and antiseptics for medical use
184	Trading in medical equipment and devices
185	Intellectual property assessment services (including assessment of copyright and related rights, industrial property, and plant variety rights)
186	Performance of radiation jobs
187	Atomic energy application assistance services
188	Conformity assessment services
189	Inspection, calibration and testing of measuring devices and measurement standards
190	Technology assessment, valuation and examination services

191	Intellectual property representation services (including industrial property representation service and plant variety rights representation service)
192	Film production and dissemination services
193	Antique assessment services
194	Formulation, implementation and supervision of the implementation of, projects to maintain, upgrade and restore relics
195	Karaoke or discotheque business
196	Travel services
197	Dealing in sports activities of sports businesses and professional sports clubs
198	Organization of art performance, fashion shows, beauty or model contests
199	Dealing in phonograms or video recordings of songs, dances and dramas
200	Accommodation services
201	Trading in national relics, antiques and treasures
202	Export of relics and antiques not under state ownership or ownership of political organizations or socio-political organizations; import of cultural goods subject to specialized management by the Ministry of Culture, Sports and Tourism
203	Museum services
204	Dealing in electronic games (except prize-winning electronic games for foreigners and online prize-winning electronic games)
205	Land survey and valuation consultancy services
206	Land use plan and master plan formulation services
207	Development of information technology technical infrastructure and software for land information systems
208	Land database building services
209	Land valuation services
210	Measuring and mapping services
211	Hydro-meteorology forecasting and warning services
212	Ground water drilling and exploration services

213	Services of exploiting and using water resources, discharging sewage into water sources
214	Services of basic survey and consultancy with planning, schemes and reports on water resources
215	Mineral exploration services
216	Mineral mining
217	Waste transport and treatment services
218	Scrap import
219	Environmental observation services
220	Business activities of commercial banks
221	Business activities of non-bank credit institutions
222	Business activities of cooperative banks, people's credit funds and microfinance institutions
223	Services of intermediary payment and payment without payment accounts of customers
224	Credit information services
225	Dealing in business activities and foreign exchange operations of organizations other than credit institutions
226	Trading in gold plate
227	Money printing and casting